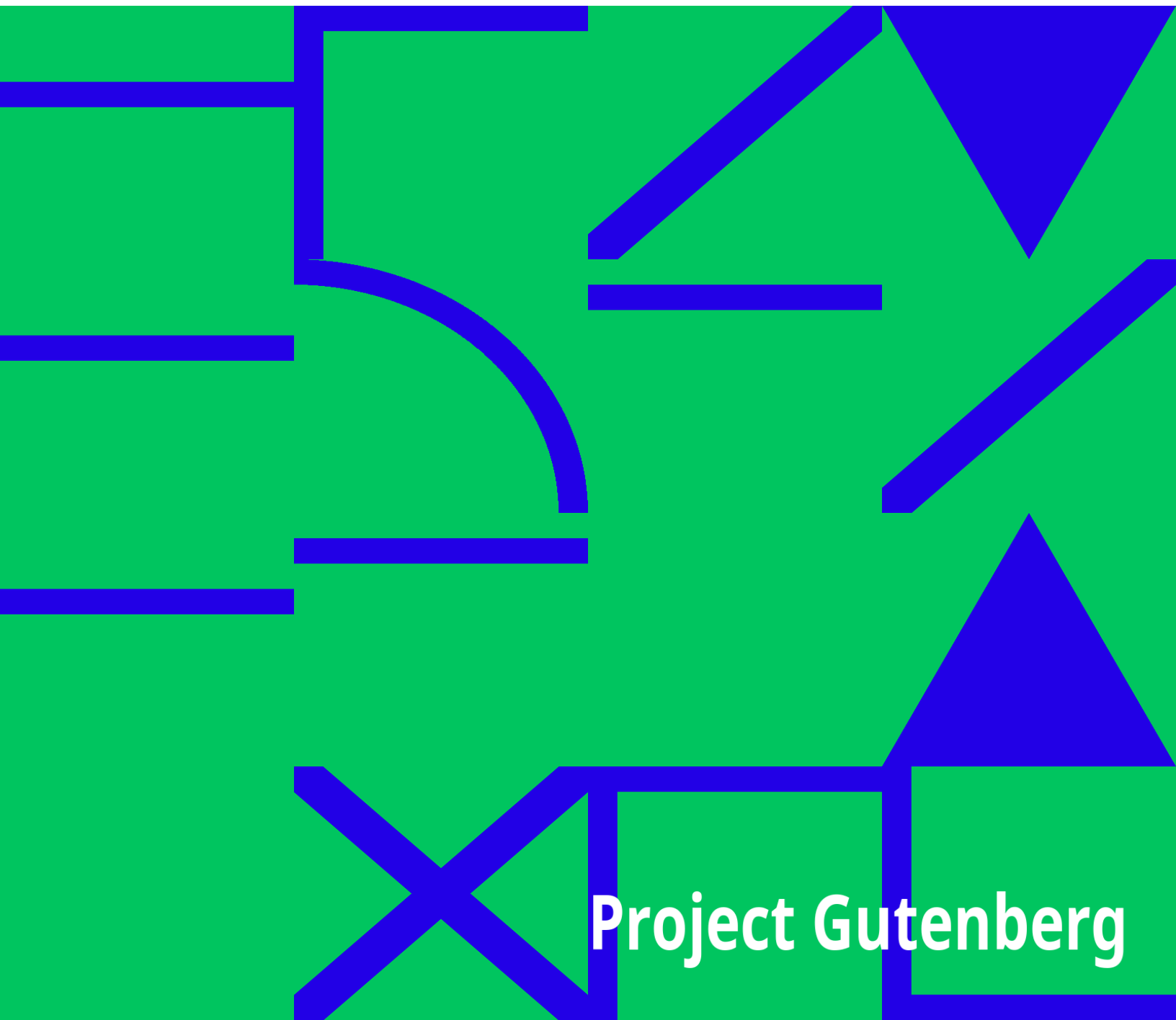


Conscience — Volume 3

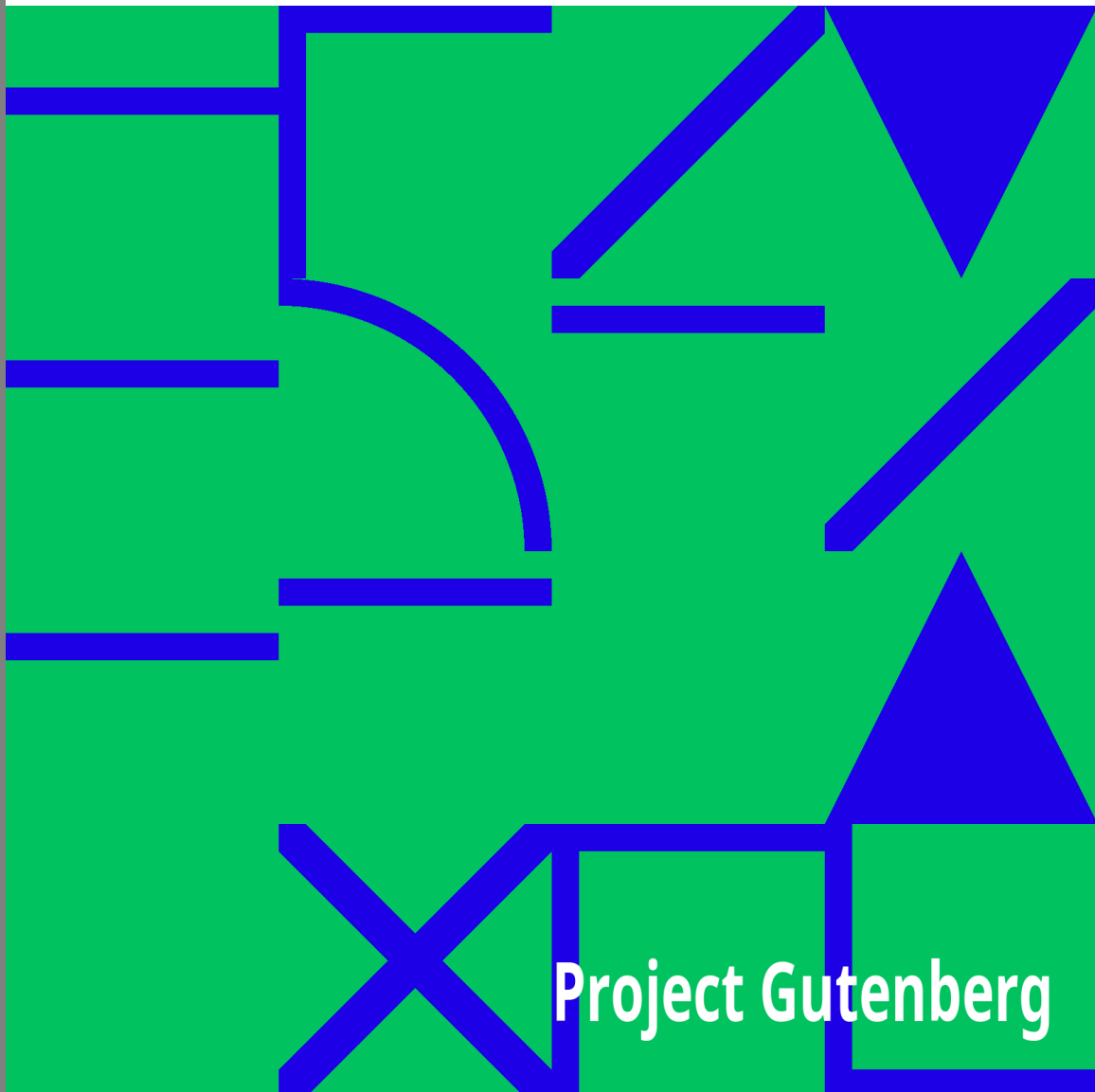
Hector Malot

An abstract geometric pattern composed of various blue shapes and lines on a green background. The pattern includes horizontal, vertical, and diagonal lines, as well as right-angled triangles, a quarter-circle arc, and a large 'X' shape. The lines vary in thickness and are arranged in a non-repeating, geometric fashion.

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Conscience — Volume 3

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CONSCIENCE

By HECTOR MALOT

BOOK 3.

CHAPTER XXIV

HEDGING

As he did not reply to this cry of triumph, she looked at him in surprise. saw his face, pale, agitated, under the shock evidently of a violent emotion that she could not explain to herself.

"What is the matter?" she asked, with uneasiness.

"Nothing," he answered, almost brutally.

"You do not wish to weaken my hope?" she said, not imagining that he could not think of this hope and of Florentin. This was a path to lead him out of his confusion. In following it he would have time to recover himself.

"It is true," he said.

"You do not think that what Madame Dammauville saw proves Florentin's innocence?"

"Would what may be a proof for Madame Dammauville, for you, and for me, be one in the eyes of the law?"

"However—"

"I saw you so joyful that I did not dare to interrupt you."

"Then you believe that this testimony is without value," she murmured, feeling crushed.

"I do not say that. We must reflect, weigh the pro and con, compass the situation from divers points of view; that is what I try to do, which is the cause of my preoccupation that astonishes you."

"Say that it crushes me; I let myself be carried away."

"You need not be crushed or carried away. Certainly, what this lady told you forms a considerable piece of work."

"Does it not?"

"Without any doubt. But in order that the testimony she gives may be of great consequence, the witness must be worthy of trust."

"Do you believe this lady could have invented such a story?"

"I do not say that; but before all, it is necessary to know who she is."

"The widow of an attorney."

"The widow of an attorney and landowner. Evidently this constitutes a social status that merits consideration from the law; but the moral state, what is it? You say that she is paralyzed?"

"She has been so a little more than a year."

"Of what paralysis? That is a vague word for us others. There are paralyses that affect the sight; others that affect the mind. Is it one of these with which this lady is afflicted, or one of the others, which permitted her really to see, the evening of the assassination, that which she relates, and which leaves her mental faculties in a sane condition? Before everything, it is important to know this."

Phillis was prostrated.

"I had not thought of all that," she murmured.

"It is very natural that you had not; but I am a doctor, and while you talked it was the doctor who listened."

"It is true, it is true," she repeated. "I only saw Florentin."

"In your place I should have seen, like you, only my brother, and I should have been carried away by hope. But I am not in your place. It is by your voice that this woman speaks, whom I do not know, and against whom I must be on my guard, for the sole reason that it is a paralytic who has told this story."

She could not restrain the tears that came to her eyes, and she let them flow silently, finding nothing to reply.

"I am sorry to pain you," he said.

"I saw only Florentin's liberty."

"I do not say this testimony of Madame Dammauville will not influence the judge, and, above all, the jury; but I must warn you that you will expose yourself to a terrible deception if you believe that her testimony alone will give your brother liberty. It is not on a testimony of this kind or of this quality that the law decides; better than we, it knows to what illusions people can lend themselves when it is the question of a crime that absorbs and excites the public curiosity. There are some witnesses who, with the best faith in the world, believe they have seen the most extraordinary things which only existed in their imaginations; and there are people who accuse themselves rather than say nothing."

He heaped words on words, as if, in trying to convince Phillis, he might hope to convince himself; but when the sound of his words faded, he was obliged to declare to himself that, whatever the paralysis of this woman might be, it had not, in this instance, produced either defect of sight or of mind. She had seen, indeed, the tall man with long hair and curled beard, dressed like a gentleman, who was not Florentin. When she related the story of the lamp and the curtain cords, she knew what she was saying.

In his first alarm he had been very near betraying himself. Without doubt he should have told himself that this incident of the curtains might prove a trap; but all passed so rapidly that he never imagined that, exactly at the moment when Caffie raised the lamp to give him light, there was a woman opposite looking at him, and who saw him so plainly that she had not forgotten him. He thought to use all precautions on his side in drawing the

curtains, when, on the contrary, he would have done better had he left them undrawn. Without doubt the widow of the attorney would have been a witness of a part of the scene, but in the shadow she would not have distinguished his features as she was able to do when he placed himself before the window under the light. But this idea did not enter his mind, and, to save himself from an immediate danger, he threw himself into another which, although uncertain, was not less grave.

Little by little Phillis recovered herself, and the hope that Madame Dammauville put in her heart, momentarily crushed by Sanie's remarks, sprang up again.

"Is it not possible Madame Dammauville really saw what she relates?"

"Without any doubt; and there are even probabilities that it is so, since the man who drew the curtains was not your brother, as we know. Unfortunately, it is not ourselves who must be convinced, since we are convinced in advance. It is those who, in advance also, have one whom they will not give up unless he is torn from them by force."

"But if Madame Dammauville saw clearly?"

"What must be learned before everything is, if she is in a state to see clearly; I have said nothing else."

"A doctor would surely know on examining her?"

"Without doubt."

"If you were this doctor?"

It was a cry rather than an exclamation. She wished that he should present himself before this woman; but in that case she would recognize

him.

Once more, under the pain of betraying his emotion, he must recover from this first impulse.

"But how can you wish me to go and examine this woman whom I do not know, and who does not know me? You know very well that patients choose their doctors, and not doctors their patients."

"If she sent for you?"

"By what right?"

"By what I shall learn on making the concierge talk, could you not recognize her kind of paralysis without seeing her?"

"That would be a little vague. However, I will do the best I can. Try to learn not only what concerns her illness, but all that relates to her —what her position is, who are her relations, which is important for a witness who overawes as much by what he is as by what he says. You understand that a deposition that destroys the whole plan of the prosecution will be severely disputed, and will only be accepted if Madame Dammauville has by her character and position a sufficient authority to break down all opposition."

"I will also try to learn who is her doctor. You may know him. What he would tell you would be worth more than all the details that I could bring you."

"We should be immediately decided on the paralysis, and we should see what credit we could accord this woman's words."

While listening to Phillis and talking himself, he had time to compass the situation that this thunderbolt created for him. Evidently, the first thing to

do was to prevent a suspicion from arising in Phillis's mind, and it was to this that he applied himself on explaining the different kinds of paralysis. He knew her well enough to know that he had succeeded. But what would she do now? How did she mean to make use of Madame Dammauville's declaration? Had she spoken of it to any one besides himself? Was it her intention to go to Nougarede and tell him what she had learned? All that must be made clear, and as soon as possible. She must do nothing without his knowledge and approval. The circumstances were critical enough, without his letting accident become the master to direct them and conduct them blindly.

"When did you see Madame Dammauville?" he asked.

"Just this minute."

"And now, what do you wish to do?"

"I think that I ought to tell Monsieur Nougarde."

"Evidently, whatever the value of Madame Dammauville's declaration, he should know it; he will appraise it. Only, as it is well to explain to him what may vitiate this testimony, if you wish, I will go to see him."

"Certainly I wish it, and I thank you."

"In the mean time, return to your mother and tell her what you have learned; but, that she may not yield to an exaggerated hope, tell her, also, that if there are chances, and great ones, in favor of your brother, on the other side there are some that are unfavorable. Tomorrow or this evening you will return to the Rue Sainte-Anne and begin your inquiries of the concierge. If the old woman tells you nothing interesting, you must go to Madame Dammauville, and make some reason for seeing her. Make her

talk, and you will notice if her ideas are consecutive, and examine her face and eyes. Above all, neglect nothing that appears to you characteristic. Having taken care of your mother, you know almost as well as a doctor the symptoms of myelitis, and you could see instantly if Madame Dammauville has them."

"If I dared!" she said timidly, after a short hesitation.

"What?"

"I would ask you to come with me to the concierge immediately."

"You think of such a thing!" he exclaimed.

Since the evening when he had testified to the death of Caffie, he had not returned to the Rue Sainte-Anne; and it was not when the description given by Madame Dammauville was, doubtless, already spread in the quarter, that he was going to commit the imprudence of showing himself. But he must explain this exclamation.

"How can you expect a doctor to give himself up to such an investigation? On your part it is quite natural; on mine it would be unheard of and ridiculous; add that it would be dangerous. You must conciliate Madame Dammauville, and this would be truly a stupidity that would give her a pretext for thinking that you are trying to find out whether she is, or is not, in her right mind."

"That is true," she said. "I had not thought of that. I said to myself that, while I could only listen to what the concierge would tell me, you would know how to question her in a way that would lead her to say what you want to learn."

"I hope that your investigation will tell me. In any case, let us offend in nothing. If to-morrow you bring me only insignificant details, we will consider what to do. In the mean time, return to the concierge this evening and question her. If it is possible, see Madame Dammauville, and do not go home until after having obtained some news on this subject that is of such importance to us. And I will go to see Nougarde."

CHAPTER XXV

DAGNEROUS DETAILS

It was not to falsify Phillis's story that Sanie! insisted on going to see Nougarede. What good would it do? That would be a blunder which sooner or later would show itself, and in that case would turn against him. He would have liked, with the authority of a physician, to explain that this testimony of a paralytic could have no more importance than that of a crazy woman.

But at the first words of an explanation Nougarede stopped him.

"What you say is very possible, my dear friend; but I shall make you see that it is not for us to raise objections of this kind. Here is a testimony that may save our client; let us accept this, such as it may be, whence it comes. It is the business of the prosecution to prove that our witness could not see what she relates that she saw, or that her mental condition does not permit her to know what she saw; and do not be afraid, investigation will not be lacking. Do not let us even give a hint from our side; that would be stupid."

This, certainly, was not what Sanie! wished; only he believed it a duty, in his quality of physician, to indicate some rocks against which they might strike themselves.

"Our duty," continued the advocate, "is, therefore, to manage in a way to escape them; and this is how I understand the role of this really providential witness, if it is possible to make her undertake it. Since it has occurred to you—you who wish the acquittal of this poor boy—that the testimony of Madame Dammauville may be vitiated by the simple fact that it comes from a sick woman, it is incontestable, is it not, that this same idea will occur to those who wish for his conviction? This testimony should be irrefutable; it should be presented in such a way that no one could raise anything against it, so that it would compel the acquittal in the same moment that it is presented. It was between a quarter past and half past five o'clock that Caffie was assassinated; at exactly a quarter past five, a woman of respectable position, and whose intellectual as well as physical faculties render her worthy of being believed, saw in Caffie's office a man, with whom it is materially impossible to confound Florentin Cormier, draw the curtains of the window, and thus prepare for the crime. She would make her deposition in these conditions, and in these terms, and the affair would be finished. There would not be a judge, after this confrontation, who would send Florentin Cormier before the assizes, and, assuredly, there would not be two voices in the jury for conviction. But things will not happen like this. Without doubt, Madame Dammauville bears a name that is worth something; her husband was an estimable attorney, a brother of the one who was notary at Paris."

"Have you ever had any business with her?"

"Never. I tell you what is well known to every one, morally she is irreproachable. But is she the same physically and mentally? Not at all, unfortunately. If a physician can be found who will declare that her paralysis does not give her aberrations or hallucinations, another one will be found who will contest these opinions, and who will come to an opposite conclusion. So much for the witness herself; now for the testimony. This

testimony does not say that the man who drew the curtains at a quarter past five was built in such a way that it is materially impossible to confound him with Florentin Cormier, because he was small or hunchbacked or bald, or dressed like a workman; while Florentin is tall, straight, with long hair and beard, and dressed like a gentleman. It says, simply, that the man who drew the curtains was tall, with long hair, and curled blond beard, and dressed like a gentleman. But this description is exactly Florentin Cormier's, as it is yours—"

"Mine!" Saniel exclaimed.

"Yours, as well as that of many others. And it is this, unfortunately for us, which destroys the irrefutability that we must have. How is it certain that this tall man, with long hair and curled beard, is not Florentin Cormier, since these are his chief characteristics? And it was at night, at a distance of twelve or fifteen metres, through a window, whose panes were obscured by the dust of papers and the mist, that this sick woman, whose eyes are affected, whose mind is weakened by suffering, was able, in a very short space of time, when she had no interest to imprint upon her memory what she saw, to grasp certain signs, that she recalled yesterday strongly enough to declare that the man who drew the curtains was not Florentin Cormier, against whom so many charges have accumulated from various sides, and who has only this testimony in his favor—every sensible person could not but find it suspicious!"

"But it is true," Saniel said, happy to lend himself to this view of the matter, which was his own.

"What makes the truth of a thing, my dear sir, is the way of presenting it; let us change this manner and we falsify it. To arrive at the conclusion which made you say 'It is true,' I am on the side of the idea that to-morrow Madame Dammauville's story should be known to the law, that the brave

lady should be heard before the prosecution, and that time should be allowed to examine this testimony that you suspect. Now let us look at it from the opposite point. Madame Dammauville's story is not known to the law, or, if something transpires, we will arrange that this something is so vague that the prosecution will attach but little importance to it. And this is possible if we do not base a new defence on this testimony. We arrive at the judgment, and when the prosecution has listened to its witnesses which have overwhelmed us—the agent of affairs Savoureux, the tailor Valerius,—it is Madame Dammauville's turn. She simply relates what she saw, and declares that the man who is on the prisoner's bench is not the same who drew the curtains at a quarter past five. Do you see the 'coup de theatre'? The prosecution had not foreseen it; it had not inquired into the health of the witness; the physician would not be there to quote the defects of sight or reason; very probably it would not think of the dusty windowpanes, or of the distance. And all the opposing arguments that would be properly arranged if there were time, would be lacking, and we should carry the acquittal with a high hand."

Arranged thus, things were too favorable for Saniel for him not to receive, with a sentiment of relief, this combination which brought Florentin's acquittal more surely, it seemed to him, than all that they had arranged for his defence up to this day. However, an objection occurred to him, which he communicated to Nougarede immediately.

"Would one wish to admit that Madame Dammauville had kept silent on so grave a matter, and waited for an audience to reveal it?"

"This silence she kept until yesterday; why should she not keep it a few days longer? It is evident that if she had not related what she saw, it is because she had reasons for being silent. It is probable that, being ill, she did not wish to expose herself to the annoyances and fatigue of an

investigation; and in her eyes her deposition was not of great importance. What should she have revealed to the prosecution? That the man who committed the crime was tall, with a curled blond beard? This man the law held, or it held one the description of whom answered to this, which to Madame Dammauville was the same thing. She did not need, therefore, to call the police or the judge to tell them these insignificant things for her own comfort; and, also, because she believed that she had nothing interesting to say, she did not speak. It was when accident brought to her notice the portrait of the accused, she recognized that the law had not the real criminal, and then she broke the silence. The moment when she first saw this portrait is not stated precisely; I undertake to arrange that. The difficulty is not there."

"Where do you see it?"

"Here: Madame Dammauville may have already told her story to so many persons that it is already public property, where the prosecution has picked it up. In that case there will be no 'coup de theatre'. She will be questioned, her deposition examined, and we will have only a suspected testimony. The first thing to do, then, is to know how far this story has spread, and if there is yet time to prevent it from spreading farther."

"That is not easy, it seems to me."

"I believe Mademoiselle Phillis can do it. She is a brave woman, whom nothing dejects or disconcerts, which is the living proof that we are only valued according to the force and versatility of the inner consciousness. For the rest, I need not sound her praises, since you know her better than I; and what I say has no other object but to explain the confidence that I place in her. As I cannot interfere myself, I think there is no better person than she to act on Madame Dammauville, without disturbing or wounding her, and to bring about the result that we desire.

I am sure that she has already won Madame Dammauville, and that she will be listened to with sympathy."

"Do you wish me to write to her to come to see you tomorrow?"

"No; it would be better for you so see her this evening, if possible."

"I shall go to the Batignolles when I leave you."

"She will enter into her part perfectly, I am certain, and she will succeed, I hope."

"It seems to me that your combination rests, above all, on the 'coup de theatre' of the non-recognition of Florentin by Madame Dammauville. How will you bring this paralytic to court?"

"I depend upon you."

"And how?"

"You will examine her."

"I shall have to go to her house!"

"Why not?"

"Because I am not her doctor."

"You will become so."

"It is impossible."

"I do not find it at all impossible that you should be called in consultation. I have not forgotten that your thesis was on the paralyses due

to the affection of the spinal cord, and it was remarkable enough for us to discuss it in our 'parlotte' of the Rue de Vaugirard. You have, therefore, authority in the matter."

"It is not on account of having written several works on the pathological anatomy of medullary lesions, and especially on the alterations of the spinal ganglia, that one acquires authority in a question so comprehensive and so delicate."

"Do not be too modest, dear friend. I have had, lately, to consult my Dictionary of Medicine, and at each page your work was quoted. And, besides, the way in which you passed your examinations made you famous. Every one talks of you. So it is not impossible that Mademoiselle Phillis, relating that her mother was cured of a similar paralysis, will give Madame Dammauville the idea of consulting you, and her physician will send for you."

"You will not do that?"

"And why should I not do it?"

They looked at each other a moment in silence, and Saniei turned his eyes away.

"I detest nothing so much as to appear to put myself forward."

"In this case it is no matter what you detest or like. The question is to save this unfortunate young man whom you know to be innocent; and you can do a kind deed and aid us. You examine Madame Dammauville; you see with which paralysis she is afflicted, and consequently, what exceptions may be taken at her testimony. At the same time, you see if you can cure her, or, at least, put her in a state to go to court."

"And if it is proved that she cannot leave her bed?"

"In that case I shall change my order of battle, and that is why it is of capital importance—you know that that is the word—that we should be warned beforehand."

"You will make the judge receive her deposition?"

"In any case. But I shall make her write a letter that I shall read at the desired moment, and I shall call upon her physician to explain that he would not permit his patient to come to court. Without doubt, the effect would not be what I desire, but, anyhow, we should have one."

CHAPTER XXVI

A GOOD MEMORY

After Phillis, Nougarde also wished him to see Madame Dammauville; this coincidence was not the least danger of the situation that opened before him.

If he saw her, the chances were that she would recognize in him the man who drew the curtains; for, if he was able to speak to Phillis and Nougarede of an affection of the eyes or of the mind, he did not believe in these affections, which for him were only makeshifts.

When he reached Madame Cormier's, Phillis had not returned, and he was obliged to explain to the uneasy mother why her daughter was late.

It was a delirium of joy, before which he felt embarrassed. How should he break the hope of this unhappy mother?

What he had said to Phillis and to Nougarede he repeated to her.

"But it is possible, also, for paralytics to enjoy all their faculties!" Madame Cormier said, with a decision that was not in accordance with her habit or with her character.

"Assuredly."

"Am I not an example?"

"Without doubt."

"Then Florentin will be saved."

"This is what we hope. I only caution you against an excess of joy by an excess of prudence. Nevertheless, it is probable Mademoiselle Phillis will settle this for us when she returns."

"Perhaps it would have been better if you had gone to the Rue Sainte-Anne. You would have found her."

There was, then, a universal mania to send him to the Rue Sainte-Anne!

They waited, but the conversation was difficult and slow between them. It was neither of Phillis nor of Florentin that Sanial thought; it was of himself and of his own fears; while Madame Cormier's thoughts ran to Phillis. Then there were long silences that Madame Cormier interrupted by going to the kitchen to look after her dinner, that had been ready since two o'clock.

Not knowing what to say or do in the presence of Sanial's sombre face and preoccupation, which she could not explain, she asked him if he had dined.

"Not yet."

"If you will accept a plate of soup, I have some of yesterday's bouillon, that Phillis did not find bad."

But he did not accept, which hurt Madame Cormier. For a long time Sanial had been a sort of god to her, and since he had shown so much zeal

regarding Florentin, the 'culte' was become more fervent.

At last Phillis's step was heard.

"What! You came to tell mamma!" she exclaimed, on seeing Saniel.

Ordinarily her mother listened to her respectfully, but now she interrupted her.

"And Madame Dammauville?" she asked.

"Madame Dammauville has excellent eyes. She is a woman of intellect, who, without the assistance of any business man, manages her fortune."

Overcome, Madame Cormier fell into a chair.

"Oh, the poor child!" she murmured.

Exclamations of joy escaped her which contained but little sense.

"It is as I thought," Saniel said; "but it would be imprudent to abandon ourselves to hopes to-day that to-morrow may destroy."

While he spoke he escaped, at least, from the embarrassment of his position and from the examination of Phillis.

"What did Monsieur Nougard say?" she asked.

"I will explain to you presently. Begin by telling us what you learned from Madame Dammauville. It is her condition that will decide our course, at least that which Nougard counsels us to adopt."

"When the concierge saw me return," Phillis began, "she showed a certain surprise; but she is a good woman, who is easily tamed, and I had

not much trouble in making her tell me all she knows of Madame Dammauville. Three years ago Madame Dammauville became a widow without children. She is about forty years of age, and since her widowhood has lived in her house in the Rue Sainte-Anne. Until last year she was not ill, but she went every year to the springs at Lamoulon. It is a year since she was taken with pains that were thought to be rheumatic, following which, paralysis attacked her and confined her to her bed. She suffers so much sometimes that she cries, but these are spasms that do not last. In the intervals she lives the ordinary life, except that she does not get up. She reads a great deal, receives her friends, her sister-in-law—widow of a notary—her nephews and nieces, and one of the vicars of the parish, for she is very charitable. Her eyes are excellent. She has never had delirium or hallucinations. She is very reserved, detests gossip, and above everything seeks to live quietly. The assassination of Caffie exasperated her; she would let no one speak to her of him, and she spoke of it to no one. She even said that if she were in a condition to leave her house, she would sell it, so that she would never hear the name of Caffie."

"How did she speak of the portrait and of the man she saw in Caffie's office?" Sanial asked.

"That is exactly the question that the concierge was not able to answer; so I decided to go to see Madame Dammauville again."

"You are courageous," the mother said with pride.

"I assure you that I was not so on going up-stairs. After what I had heard of her character, it was truly audacious to go a second time, after an interval of two hours, to trouble her, but it was necessary. While ascending, I sought a reason to justify, or, at least, to explain my second visit, and I found only an adventurous one, for which I ought to ask your indulgence."

She said this on turning toward Saniel, but with lowered eyes, without daring to look at him, and with an emotion that made him uneasy.

"My indulgence?" he said.

"I acted without having time to reflect, and under the pressure of immediate need. As Madame Dammauville expressed surprise at seeing me again, I told her that what she had said to me was so serious, and might have such consequences for the life and honor of my brother, that I had thought of returning the next day, accompanied by a person familiar with the affair, before whom she would repeat her story; and that I came to ask her permission to present this person. This person is yourself."

"I!"

"And that is why," she said feebly, without raising her eyes, "that I have need of your indulgence."

"But I had told you—" he exclaimed with a violence that the dissatisfaction at being so disposed of was not sufficient to justify.

"That you could not present yourself to Madame Dammauville in the character of a physician unless she sent for you. I did not forget that; and it is not as a physician that I wish to beg you to accompany me, but as a friend, if you permit me to speak thus; as the most devoted, the most firm, and the most generous friend that we have had the happiness to encounter in our distress."

"My daughter speaks in my name, as in her own," Madame Cormier said with emotion; "I add that it is a respectful friendship, a profound gratitude, that we feel toward you."

Although Phillis trembled to see the effect that she produced on Saniel, she continued with firmness:

"You would accompany me, then, without doing anything ostensibly, without saying you are a doctor, and while she talks you could examine her. Madame Dammauville gave her consent to my request with extreme kindness. I shall return to her to-morrow, and if you think it useful, if you think you should accept the part that I claimed for you without consulting you, you can accompany me."

He did not reply to these last words, which were an invitation as well as a question.

"Did you not examine her as I told you?" he asked, after a moment of reflection.

"With all the attention of which I was capable in my anguish. Her glance seemed to me straight and untroubled.; her voice is regular, very rhythmical; her words follow each other without hesitation; her ideas are consecutive and clearly expressed. There is no trace of suffering on her pale face, which bears only the mark of a resigned grief. She moves her arms freely, but the legs, so far as I could judge under the bedclothes, are motionless. In many ways it seems to me that her paralysis resembles mamma's, though it is true that in others it does not. She must be extremely sensitive to the cold, for although the weather is not cold today, the temperature of her room seemed very high."

"This is an examination," Saniel said, "that a physician could not have conducted better, unless he questioned the patient; and had I been with you during this visit we should not have learned anything more. It appears certain that Madame Dammauville is in possession of her faculties, which renders her testimony invulnerable."

Madame Cormier drew her daughter to her and kissed her passionately.

"I have, therefore, nothing to do with this lady," continued Sanie, with the precipitation of a man who has just escaped a danger. "But your part, Mademoiselle, is not finished, and you must return to her tomorrow to fulfil that which Nougarde confides to you."

He explained what Nougarde expected of her.

"Certainly," she said. "I will do all that I am advised to do for Florentin. I will go to Madame Dammauville; I will go everywhere. But will you permit me to express my astonishment that immediate profit is not made of this declaration to obtain the release of my brother?"

He repeated the reasons that Nougarde had given him for not proceeding in this manner.

"I would not say anything that resembles a reproach," said Madame Cormier, with more decision than she ordinarily put into her words; "but perhaps Monsieur Nougarde has some personal ideas in his advice. Our interest is that Florentin should return to us as quickly as possible, and that he should be spared the sufferings of a prison. But I understand that to an 'ordonnance de non-lieu', in which he does not appear, Monsieur Nougarde prefers the broad light of the court, where he could deliver a brilliant address, useful to his reputation."

"Whether or not he has made this calculation," Sanie said, "things are thus. I, also, I should have preferred the 'ordonnance de non-lieu', which has the great advantage of finishing everything immediately. Nougarde does not believe that this would be a good plan to follow, so we must follow the one that he traces out for us."

"We will follow it," Phillis said, "and I believe that it may bring about the result Monsieur Nougarede expects, as Madame Dammauville would have spoken to but few persons. When I tried to make her explain herself on this point, without asking her the question directly, she told me that she had only spoken to the concierge of the non-resemblance of the portrait to the man she saw draw the curtains, so that the concierge, who had often spoken to her of Florentin and of my efforts to save him, might warn me. I shall see, then, to-morrow, how far her story has spread, and I will go to see you about it at five o'clock, unless you prefer that I should go at once to see Monsieur Nougarede."

"Begin with me, and we will go together to see him, if there is occasion. I am going to write to him."

"If I understand Monsieur Nougarde's plan, it seems that it rests on Madame Dammauville's appearance in court. Will this appearance be possible? That is what I could not learn; only a physician could tell."

Saniel did not wish to let it appear that he understood this new challenge.

"I forgot to tell you," Phillis continued, "that the physician who attends her is Doctor Balzajette of the Rue de l'Echelle. Do you know him?"

"A prig, who conceals his ignorance under dignified manners."

No sooner had these words left his lips than he realized his error. Madame Dammauville should have an excellent physician, one who was so high in the estimation of his 'confreres' that, if he did not cure her, it was because she was incurable.

"Then how can you hope that he will cure her in time for her to go to court?" Phillis asked.

He did not answer, and rose to go. Timidly, Madame Cormier repeated her invitation, but he did not accept it, in spite of the tender glance that Phillis gave him.

CHAPTER XXVII

A NEW PERIL

Would he be able to resist the pressure which from all sides at once pushed him toward the Rue Sainte Anne?

It seemed that nothing was easier than not to commit the folly of yielding, and yet such was the persistence of the efforts that were united against him, that he asked himself if, one day, he would not be led to obey them in spite of himself. Phillis, Nougarede, Madame Cormier. Now, whence would come a new attack?

For several months he had enjoyed a complete security, which convinced him that all danger was over forever. But all at once this danger burst forth under such conditions that he must recognize that there could never more be any security for him. To-day Madame Dammauville menaced him; tomorrow it would be some one else. Who? He did not know. Every one. And it was the anguish of his position to be condemned to live hereafter in fear, and on the defensive, without repose, without forgetfulness.

But it was not tomorrow about which he need be uneasy at this moment, it was the present hour; that is to say, Madame Dammauville.

That she should say, with so much firmness at the sight of a single portrait, that the man who drew the curtains was not Florentin, she must

have an excellent memory of the eyes; at the same time a resolute mind and a decision in her ideas, which permitted her to affirm without hesitation what she believed to be true.

If they should ever meet, she would recognize him, and recognizing him, she would speak.

Would she be believed?

This was the decisive question, and from what he had heard of her, it seemed that she would be.

Denials would not suffice. He did not go to Caffie's at a quarter past five. Where was he at this moment? What witness could he call upon? Caffie's wound was made by a hand skilled in killing, and this learned hand was his, more even than that of a murderer. Every one knew that his position at that moment was desperate, financially speaking; and, suddenly, he paid his debts. Who would believe the Monte Carlo story?

One word, one little hint, from this Madame Dammauville and he was lost, without defence, without possible struggles.

Truly, and fortunately, since she was paralyzed and confined to her bed, he ran no risk of meeting her face to face at the corner of a street, or at the house of an acquaintance, nor of hearing the cry of surprise that she would not fail to give on recognizing him. But that was not enough to make him sleep in an imprudent security on saying to himself that this meeting was improbable. It was improbable, also, to admit that some one was exactly opposite to Caffie's window at the moment when he drew the curtains; more improbable yet to believe that this fact, insignificant in itself, that this vision, lasting only an instant, would be so solidly engraved in a woman's memory as to be distinctly remembered after several months, as if it dated

from the previous evening; and yet, of all these improbabilities, there was formed a reality which enclosed him in such a way that at any moment it might stifle him.

Despite the importunities of Phillis, Madame Cormier, and Nougarede, and of all those which might arise, he would not be fool enough to confront the danger of a recognition in the room where this paralytic was confined—at least, that was probable, for, after what had happened, he was certain of nothing—but this recognition might take place elsewhere.

In Nougarede's plan Madame Dammauville would come to court to make her declaration; he himself was a witness; they would, therefore, at a given moment, meet each other, and it was not impossible that before the court the recognition would occur with a 'coup de theatre' very different from that arranged by Nougarede.

Without doubt there were chances that Madame Dammauville would not be able to leave her bed to go to court; but were there only one for her leaving it, he must foresee it and take precautions.

A single one offered security: to render himself unrecognizable; to cut his beard and hair; to be no more the long-haired, curled, blond-bearded man that she remembered. Had he been like every one else she would not have remarked him; or, at least, she would have confounded him with others. A man can only permit himself to be original in appearance when he is sure beforehand that he will never have anything to fear.

Assuredly, nothing was easier than to have his hair and beard cut; he had only to enter the first barber shop he came to; in a few minutes the change would be radical.

Among his acquaintances he need not be uneasy at the curiosity that this change might produce; more than one would not remark it, and those who would be surprised at first would soon cease to think of it, without doubt; otherwise, he had an easy answer for them; on the eve of becoming a serious personage, he abandoned the last eccentricities of the old student, and passed the bridge without wish to return by the left bank.

But it was not only to acquaintances that he must account; there were Phillis and Nougarde. Had not the latter already remarked the resemblance between him and the description, and would it not be imprudent to lead him to ask why this resemblance suddenly disappeared?

It would be dangerous to expose himself to this question from the lawyer, but it would be much more dangerous coming from Phillis. Nougarede would only show surprise; Phillis might ask for an explanation.

And he must reply to her so much the more clearly, because four or five times already he had almost betrayed himself as to Madame Dammauville, and if she had let his explanations or embarrassment pass, his hesitations or his refusal, without questioning him frankly, certainly she was not the less astonished. Should he appear before her with short hair and no beard, it would be a new astonishment which, added to the others, would establish suspicions; and logically, by the force of things, in spite of herself, in spite of her love and her faith, she would arrive at conclusions from which she would not be able to free herself. Already, five or six months before, this question of long hair and beard had been agitated between them. As he complained one day of the bourgeois who would not come to him, she gently explained to him that to please and attract these bourgeois it was, perhaps, not quite well to astonish those whom one does not shock. That overcoats less long, hats with less brim, and hair and beard shorter; in fact, a general appearance that more nearly approached their own, would be,

perhaps, more agreeable. He became angry, and replied plainly that such concessions were not in keeping with his character. How could he now abruptly make these concessions, and at a time when his success at the examinations placed him above such small compromises? He resisted when he needed help, and when a patient was an affair of life or death to him; he yielded when he had need of no one, and when he did not care for patients. The contradiction was truly too strong, and such that it could not but strike Phillis, whose attention had already had only too much to arouse it.

And yet, as dangerous as it was to come to the decision to make himself unrecognizable, it would be madness on his part to draw back; the sooner the better. His fault had been in not foreseeing, the day after Caffie's death, that circumstances might arise sooner or later which would force it upon him. At that moment it did not present the same dangers as now; but parting from the idea that he had not been seen by any one, that he could not have been seen, he had rejoiced in the security that this conviction gave him, and quietly become benumbed.

The awakening had come; with his eyes open he saw the abyss to the edge of which his stupidity had brought him.

How strong would he not be if during the last three months he had not had this long hair and beard, which was most terrible testimony against him? Instead of taking refuge in miserable makeshifts when Phillis and Nougarede asked him to see Madame Dammauville, he would have boldly held his own, and have gone to see her as they wished. In that case he would be saved, and soon Florentin would be also.

And he believed himself intelligent! And he proudly imagined he could arrange things beforehand so well that he would never be surprised! What he should have foreseen would come to pass, nothing more; the lesson that experience taught him was hard, and this was not the first one; the evening

of Caffie's death he saw very clearly that a new situation opened before him, which to the end of his life would make him the prisoner of his crime. To tell the truth, however, this impression became faint soon enough; but now it was stronger than ever, and to a certainty, never to be dismissed again.

But it was useless to look behind; it was the present and the future that he must measure with a clear and firm glance, if he did not wish to be lost.

After carefully examining and weighing the question, he decided to have his hair and beard cut. However adventurous this resolution was, however embarrassing it might become in provoking curiosity and questions, it was the only way of escaping a possible recognition.

Mechanically, by habit, he bent his steps toward the Rue Neuve-des-Petits-Champs, where his barber lived, but he had taken only a few steps when reflection caused him to stop; it would be certainly a mistake to provoke the gossip of this man who, knew him, and who, for the pleasure of talking, would tell every one in the quarter that he had just cut the hair and beard of Dr. Saniel. He returned to the boulevard, where he was not known.

But as he was about to open the door of the shop which he decided to enter, he changed his mind. He happened to find the explanation that he must give Phillis, and as he wished to avoid the surprise that she would not fail to show if she saw him suddenly without hair and beard, he would give this explanation before having them cut, in such a way that all at once and without looking for another reason, she would understand that this operation was indispensable.

And he went to dinner, furious with himself and with things, to see to what miserable expedients he was reduced.

CHAPTER XXVIII

SANIEL VISITS A BARBER

The following day at five o'clock when Phillis rang, he opened the door for her. Hardly had she entered when she was about to throw herself into his arms as usual, with a quickness that told how happy she was to see him. But he checked her with his hand.

"What is the matter?" she asked paralyzed and full of fears.

"Nothing; or, at least nothing much."

"Against me?"

"Certainly not, dear one."

"You are ill?"

"No, not ill, but I must take precautions which prevent me from embracing you. I will explain; do not be uneasy, it is not serious."

"Quick!" she cried, examining him, and trying to anticipate his thought.

"You have something to tell me?"

"Yes, good news. But I beg of you, speak first; do not leave me in suspense."

"I assure you that you need not be uneasy; and when I speak thus, you know that you should believe me. You see that I am not uneasy."

"It is for others that you are alarmed, never for yourself."

"Do you know what the pelagre is?"

"No."

"It is a special disease of the hair and beard, due to the presence in the epidermis of a kind of mushroom. Well, it is probable that I have this disease."

"Is it serious?"

"Troublesome for a man, but disastrous for a woman, because, before any treatment, the hair must be cut. You understand, therefore, that if I have the pelagre, as I believe I have, I am not going to expose you to the risk of catching it in embracing you. It is very easily transmitted, and in that case you would be obliged, probably, to do for yourself what I must do for myself; that is, to cut my hair. With me it is of no consequence; but with you it would be murder to sacrifice your beautiful hair."

"You say 'probably.'"

"Because I am not yet quite certain that I have the pelagre. For about two weeks I have felt a slight itching in my head and, naturally, I paid no attention to it. I had other things to do; and besides, I was not going to believe I was attacked with a parasitic malady merely on account of an itching. But, after some time, my hair became dry and began to fall out. I had no time to attend to it, and the days passed; besides, the excitement of my examinations was enough to make my hair fall. To-day, just before you came, I had a few minutes to spare, and I examined one of my hairs through a microscope; if I had not been disturbed I should have finished by this time."

"Continue your examination."

"It would take some time to do it thoroughly. If it is really the pelagre, as I have reason to believe, tomorrow you will see me without hair and beard. I would not hesitate, in spite of the astonishment that my appearance would cause."

"What good will that do?"

"I cannot tell people that I had my hair and beard cut because I have a parasitic disease. Every one knows it is contagious."

"When the hair is cut, what will be come of the disease?"

"With energetic treatment it will rapidly disappear. Before long you may embrace me if—you do not find me too ugly."

"O dearest!"

"And now for you; you have come from Madame Dammauville?"

He did not need to persist; Phillis accepted his story so readily that he felt reassured on her side; she would not alarm herself about it. As for others, the embarrassment of confessing a contagious malady would be a sufficient explanation, if he were ever obliged to furnish one.

"What did she say to you?" he asked.

"Good and kind words to begin with, which show what an excellent woman she is. After having presented myself twice at her house yesterday, you understand that I was not quite easy on asking her to receive me again to-day. As I tried to excuse myself, she said she was glad to see my devotion to my brother, that I need never excuse myself for asking her assistance, and that she would help me all she could. With this encouragement I explained what we want her to do, but she did not appear

disposed to do it. Without giving her Monsieur Nougarede's reasons, I said we were obliged to conform to the counsels of those who directed the affair, and I begged her to help us. Finally she was won over, but reluctantly, and said she would do as we wished. But she could not assure me that her servants had not talked about it, nor could she promise to leave her bed to go to court, for she had not left her room for a year."

"Does she expect to be able to rise soon?"

"I repeat her words, to which I paid great attention in order not to forget them: 'I am promised that I shall be better next year, but who can tell? I will urge my doctor to give me an answer, and when you come again I will tell you what he says.' Profiting by the door that she opened to me, I kept the conversation on this doctor. It seems to me, but I am not certain, that she has but little confidence in him. He was the classmate of her husband and of her brother-in-law the notary; he is the friend of every one, curing those who can be cured, or letting them die by accident. You see what kind of a doctor he is."

"I told you I knew him."

"See if I deceive myself, and to what I tell you, add what you already know. Frightened to see in whose hands she is, I undertook to find out, and finished by learning—without asking her directly—that she has seen no other physician during the year. When she was taken with paralysis a consultation was held, and she has had Doctor Balzajette ever since. She says he is very kind, and takes care of her as well as another would."

Saniel improved the opportunity to refer to his stupidity in frankly expressing his opinion on the solemn Balzajette.

"It is probable," he said.

"It is certain? Do you believe that during one year nothing has appeared in Madame Dammauville's disease that should demand new treatment? Do you think the solemn Balzajette is incapable of finding it all by himself?"

"He is not so dull as you suppose."

"It is you who speak of dulness."

"To diagnose a disease and to treat it are two things. It is the consultation you speak of that settled the question of Madame Dammauville's disease, and prescribed the treatment that Balzajette had only to apply; and his capacity, I assure you, is sufficient for this task."

As she appeared but little reassured, he persisted, for it would be an imprudence to let Phillis become enamored of the idea that if he attended Madame Dammauville, he would cure her, even if it required a miracle.

"We have some time before us, since the 'ordonnance de renvoi' before the assizes is not yet given out. Madame Dammauville has promised to question her doctor, to learn if he hopes to put her in condition to leave her bed soon. Let us wait, therefore."

"Would it not be better to act than to wait?"

"At least let us wait for news from Balzajette. Either it will be satisfactory, and then we shall have nothing to do, or it will not be, and in that case I promise you to see Balzajette. I know him well enough to speak to him of your patient, which, above all, enables me, in making your brother intervene, to interest myself openly in his reestablishment."

"O dearest, dearest!" she murmured, in a spirit of gratitude.

"You cannot doubt my devotion to you first, and to your brother afterward. You asked me an impossible thing, that I was obliged to refuse, to my regret, precisely because it was impossible; but you know that I am yours, and will do all I can for your family."

"Forgive me."

"I have nothing to forgive; in your place I should think as you do, but I believe that in mine you would act as I do."

"Be sure that I have never had an idea of blame in my heart for what is with you an affair of dignity. It is because you are high and proud that I love you so passionately."

She rose.

"Are you going?" he asked.

"I want to carry Madame Dammauville's words to mamma; you can imagine with what anguish she awaits me."

"Let us, go. I will leave you at the boulevard to go to see Nougarede."

The interview with the advocate was short.

"You see, dear friend, that my plan is good; bring Madame Dammauville to court, and we shall have some pleasant moments."

This time Sanial had not the hesitation of the previous evening, and he entered the first barber-shop he saw. When he returned to his rooms he lighted two candles, and placing them on the mantle, he looked at himself in the glass.

Coquetry had never been his sin, and often weeks passed without his looking in a mirror, so indifferent was he when making his toilet. However, as a young boy he sometimes looked in his small glass, asking himself what he would become, and he could now recall his looks—an energetic face with clearly drawn features, a physiognomy open and frank, without being pretty, but not disagreeable. His beard had concealed all this; but now that it was gone, he said to himself without much reflection that he would find again, without doubt, the boy he remembered.

What he saw in the glass was a forehead lined transversely; oblique eyebrows, raised at the inside extremity, and a mouth with tightened lips turned down at the corners; furrows were hollowed in the cheeks; and the whole physiognomy, harassed, ravaged, expressed hardness.

What had become of that of the young man of other days? He had before him the man that life had made, and of whom the violent contractions of the muscles of the face had modelled the expression.

"Truly, the mouth of an assassin!" he murmured.

Then, looking at his shaved head, he added with a smile:

"And perhaps that of one condemned to death, whose toilet has just been made for the guillotine."

CHAPTER XXIX

A BROKEN NEGATIVE

To have made himself unrecognizable was, without doubt, a safe precaution; but having started on this course, he would not be easy until he had destroyed all traces of himself in such a way that Madame Dammauville would never be able to find the man that she had seen so clearly under Caffie's lamp.

Precisely because he was not vain and had no pretension to beauty, he had escaped the photograph mania. Once only he had been photographed in spite of himself, simply to oblige a classmate who had abandoned medicine for photography.

But now this once was too much, for there was danger that this portrait taken three years before, and showing him with the hair and beard that he wished to suppress, might be discovered. Without doubt there were few chances that a copy of it would be seen by Madame Dammauville; but if there existed only one against a hundred thousand, he must arrange it so that he need have no fear.

He had had a dozen copies of this photograph, but as his relatives were few, he kept the majority of them. One he sent to his mother, who was living at that time; another went to the priest of his village, and later he had

given one to Phillis. He must, then, have nine in his possession. He found them and burned them immediately.

Of the three that remained, only one might testify against him, the one belonging to Phillis. But it would be easy for him to get it again on inventing some pretext, while as to the others, truly he had nothing to fear.

The real danger might come from the photographer, who perhaps had some of the photographs, and who undoubtedly preserved the negative. This was his first errand the next day.

On entering the studio of this friend, he experienced a disagreeable feeling, which troubled him and made him uneasy; he had not given his name, and counting on the change made by the cutting of his hair and beard, he said to himself that his friend, who had not seen him for a long time, certainly would not recognize him.

He had taken but a few steps, his hat in his hand, like a stranger who is about to accost another, when the photographer came toward him with outstretched hand, and a friendly smile on his face.

"You, my dear friend! What good fortune is worth the pleasure of your visit to me? Can I be useful to you in any way?"

"You recognize me, then?"

"What! Do I recognize you? Do you ask that because you have cut your hair and beard? Certainly it changes you and gives you a new physiognomy; but I should be unworthy of my business if, by a different arrangement of the hair, I could not recognize you.

Besides, eyes of steel like yours are not forgotten; they are a description and a signature."

Then this means in which he placed so much confidence was only a new imprudence, as the question, "You recognize me, then?" was a mistake.

"Come, I will pose you at once," the photographer said. "Very curious, this shaved head, and still more interesting, I think, than with the beard and long hair. The traits of character are more clearly seen."

"It is not for a new portrait that I have come, but for the old one. Have you any of the proofs?"

"I think not, but I will see. In any case, if you wish some they are easily made, since I have the plate."

"Will you look them up? For I have not a single proof left of those you gave me, and on looking at myself in the glass this morning I found such changes between my face of to-day and that of three years ago, that I would like to study them. Certain ideas came to me on the expression of the physiognomy, that I wish to study, with something to support them."

The search for the proofs made by an assistant led to no results; there were no proofs.

"Exactly; and for several days I have thought of making some," the photographer said. "Because your day of glory will come, when your portrait will be in a distinguished place in the shop-windows and collections. Every one talks of your 'conours'. Although I have abandoned medicine without the wish to return to it, I have not become indifferent to what concerns it, and I learned of your success. Which portrait shall we put in circulation? The old or the new?"

"The new."

"Then let us arrange the pose."

"Not to-day; it is only yesterday that I was shaved, fearing an attack of pelagre, and the skin covered by the beard has a crude whiteness that will accentuate the hardness of my physiognomy, which is really useless. We will wait until the air has tanned me a little, and then I will return, I promise you."

"How many proofs do you want of your old portrait?"

"One will do."

"I will send you a dozen."

"Do not take the trouble; I will take them when I come to pose. But in the mean time, could you not show me the plate?"

"Nothing easier."

When it was brought, Sanie! took the glass plate with great care, holding it with the tips of his fingers by the two opposite corners, in order not to efface the portrait. Then, as he was standing in the shadow of a blue curtain, he walked towards the chimney where the light was strong, and began his examination.

"It is very good," he said; "very curious."

"Only a photograph can have this documentary value."

To compare this document with the reality, Sanie! approached the chimney more closely, above which was a mirror. When his feet touched the marble hearth he stopped, looking alternately at the plate which he held carefully in his hands, and at his face reflected in the glass. Suddenly he made an exclamation; he let fall the plate, which, falling flat on the marble, broke into little pieces that flew here and there.

"How awkward I am!"

He showed a vexation that should not leave the smallest doubt in the photographer's mind as to its truth.

"You must get one of the proofs that you have given away," his friend said, "for I have not a single one left."

"I will try and find one."

What he did try to find on leaving was whether or no he had succeeded in rendering himself unrecognizable, for he could not trust to this experience, weakened by the fact that this old friend was a photographer. With him it was a matter of business to note the typical traits that distinguish one face from another, and in a long practice he had acquired an accuracy Madame Dammauville could not possess.

Among the persons he knew, it seemed to him that the one in the best condition to give certainty to the proof was Madame Cormier. He knew at this hour she would be alone, and as she had not been, assuredly, warned by her daughter that he intended to shave, the experiment would be presented in a way to give a result as exact as possible.

In answer to his ring Madame Cormier opened the door, and he saluted her without being recognized; but as the hall was dark this was not of great significance. His hat in his hand, he followed her into the dining-room without speaking, in order that his voice should not betray him.

Then, after she had looked at him a moment, with uneasy surprise at first, she began to smile.

"It is Doctor Sanial !" she cried. "Mon Dieu! How stupid of me not to recognize you; it changes you so much to be shaved! Pardon me."

"It is because I am shaved that I come to ask a favor."

"Of us, my dear sir? Ah! Speak quickly; we should be so happy to prove our gratitude."

"I would ask Mademoiselle Phillis to give me, if she has it, a photograph that I gave her about a year ago."

As Phillis wished the liberty to expose this photograph frankly, in order to have it always before her, she had asked for it, and Sanie! had given it to her, in her mother's presence.

"If she has it!" exclaimed Mme. Cormier. "Ah! my dear sir, you do not know the place that all your goodness, and the services that you have rendered us, have made for you in our hearts."

And passing into the next room, she brought a small velvet frame in which was the photograph. Sanie! took it out, on explaining the study for which he wanted it, and after promising to bring it back soon, he returned to his rooms.

Decidedly, everything was going well. The plate was destroyed, Phillis's proof in his hands; he had nothing more to fear from this side. As to the experiment made on the mother, it was decisive enough to inspire him with confidence. If Madame Cormier, who had seen him so often and for so long a time, and who thought of him at every instant, did not recognize him, how was it possible that Madame Dammauville, who had only seen him from a distance and for a few seconds, could recognize him after several months?

Would he never accustom himself to the idea that his life could not have the tranquil monotony of a bourgeois existence, that it would experience

shocks and storms, but that if he knew how to remain always master of his force and will, it would bring him to a safe port?

The calm that was his before this vexation came back to him, and when the last proofs of his concours, confirming the success of the first, had given him the two titles that he so ardently desired and pursued at the price of so many pains, so many efforts and privations, he could enjoy his triumph in all security.

He held the present in his strong hands, and the future was his.

Now he could walk straight, boldly, his head high, jostling those who annoyed him, according to his natural temperament.

Although these last months had been full of terrible agitation for him, on account of everything connected with the affair of Caffie and Florentin, and above all, on account of the fatigue, emotion, and the fever of his 'concours', yet he had not interrupted his special works for a day or even an hour, and his experiments followed for so many years had at length produced important results, that prudence alone prevented him from publishing. In opposition to the official teaching of the school, these discoveries would have caused the hair to stand upright on the old heads; and it was not the time, when he asked permission to enter, to draw upon himself the hostility of these venerable doorkeepers, who would bar the way to a revolutionist. But, now that he was in the place for ten or twelve years, he need take no precautions, either for persons or for ideas, and he might speak.

CHAPTER XXX

PHILLIS PRECIPITATES MATTERS

Saniel saw his colleague, the solemn Balzajette, and so adroitly as not to provoke surprise or suspicion, he spoke of Madame Dammauville, in whom he was interested incidentally; without persisting, and only to justify his question, he explained the nature of this interest.

Although solemn, Balzajette was not the less a gossip, and it was his solemnity that made him gossip. He listened to himself talk, and when, his chest bulging, his pink chin freshly shaved resting on his white cravat, his be-ringed hand describing in the air noble and demonstrative gestures, one could, if one had the patience to listen to him, make him say all that one wished; for he was convinced that his interlocutor passed an agreeable moment, whose remembrance would never be forgotten. His patients might wait in pain or anguish, he did not hasten the majestic delivery of his high-sounding phrases with choice adjectives; and unless it was to go to a dinner-party, which he did at least five days in the week, he could not leave you until after he had made you partake of the admiration that he professed for himself.

It was to an affection of the spinal cord that Mme. Dammauville's paralysis was due, and consequently it was perfectly curable; even

Balzajette was astonished that with his treatment and his care the cure was delayed.

"But what shall I say to you, young 'confrere'? You know better than I that with women everything is possible—above all the impossible."

And during a half-hour he complaisantly related the astonishment that the fashionable women under his care had caused him, in spite of his knowledge and experience.

"Well, to resume, what shall I tell you, young 'confrere'?"

And he repeated and explained what he had already said and explained.

Although Balzajette read only a morning paper, and never opened a book, he had heard of Sanie's reputation, and because he was young he thought he might manage this 'confrere', who seemed destined to make a good position. In spite of the high esteem that he professed for his own merits and person, he vaguely felt that the doctors of his generation who were eminent did not treat him with all the consideration that he accorded himself, and in order to teach his ancient comrades a lesson, he was glad to enter into friendly relations with a young one 'dans le mouvement'. He would speak of his young confrere Sanie: "You know the one who was appointed 'agregé'," and he would relate the advice that he, Balzajette, had given him.

That Madame Dammauville would be well enough to go to court Sanie doubted, above all, after Balzajette had explained his treatment; and as far as he was concerned, he could not but rejoice. Doubtless, it would be hard for Florentin not to have this testimony, and not to profit by the 'coup de theatre' prepared by Nougarede; but for himself, he could only feel happy over it. In spite of all the precautions he had taken, it would be better not to

expose himself to a meeting with Madame Dammauville in the witness-chamber, or even in court. They must depend upon a letter supported by Balzajette's deposition, and Florentin would be not the less acquitted. Only Nougarede would have to regret his 'coup de theatre'. But the satisfaction or disappointment of Nougarede was nothing to him.

But he did not tell Phillis the ideas suggested by his interview with Balzajette; he summed up the conclusions of this interview. Balzajette said that Madame Dammauville would soon be on her feet, and one might have faith in his word; Florentin would be saved, and there was nothing to do but to let things go on as they were going.

Phillis, Madame Cormier, Nougarede, Florentin himself, whom the Mazas cell had reconciled neither with hope nor with providential justice, were all delighted with this idea.

Also, when the chamber of the prosecution sent Florent to the assizes, the emotion of Madame Cormier and Phillis would not be too violent. Madame Dammauville would be in a state to make her deposition, since the evening before she had been able to leave her bed; and although she left it for only an hour, and then to go from her bedroom to her parlor, that was enough. Nougarede said that the affair would come on at the second session in April; between then and now Madame Dammauville would be solid enough on her legs to appear before the jury and carry the acquittal.

To Phillis, Saniel repeated that the cure was certain, and to her, also, he rejoiced aloud. But he was troubled about this cure. This meeting, only the idea of which had alarmed him to the point of losing his head, would be brought about, and under conditions that could not but affect him. Truly, the precautions he had taken should reassure him, but after all there remained no less a troublesome uncertainty. Who could tell? He preferred that she should not leave her room, and that Nougarede should find a way to obtain

her deposition without taking her to court; he would then feel more reassured, more calm in mind, and with a more impassive face he could go to court.

Was he really unrecognizable? This was the question that beset him now. Many times he compared his reflection in the glass with the photograph that he had given Phillis. The hair and beard were gone, but his eyes of steel, as his friend said, still remained, and nothing could change them. He might wear blue eyeglasses, or injure himself in a chemical experiment and wear a bandage. But such a disguise would provoke curiosity and questions just so much more dangerous, because it would coincide with the disappearance of his hair and beard.

But these fears did not torment him long, for Phillis, who now passed a part of every day in the Rue Sainte-Anne with Madame Dammauville, came one evening in despair, and told him that that day the invalid had been able to leave her bed for a few minutes only.

Then she would not go to court.

This apprehension of meeting Madame Dammauville face to face had begun to exasperate him; he felt like a coward in yielding to it, and since he had not the force to shake it off, he was happy to be relieved from it by the intervention of chance, which, after having been against him so long, now became favorable. The wheel turned.

"See Madame Dammauville often," he said to Phillis, "and note all that she feels; perhaps I shall find some way to repair this impediment, something that I may suggest to Balzajette without his suspecting it. Besides, it is reasonable to believe that the recrudescence of cold that we are suffering from now may have something to do with the change in her

condition; it is probable that with the mild spring weather she may improve."

He hoped by this counsel to quiet Phillis's uneasiness and to gain time. But it had the opposite effect. In her anguish, which increased as the time for the trial approached, it was not probabilities, any more than the uncertain influence of the spring, that Phillis could depend on; she must have something more and better; but fearing a refusal, she forbore to tell him what she hoped to obtain.

It was only when she had succeeded that she spoke.

Every day, on leaving Madame Dammauville, she came to tell him what she had learned, and for three successive days her story was the same:

"She was not able to leave her bed."

And each day he made the same reply:

"It is the cold weather. Surely, we shall soon have a change; this frost and wind will not continue beyond the end of March."

He was pained at her desolation and anguish, but what could he do? It was not his fault that this relapse occurred at a decisive moment; fate had been against him long enough, and he was not going to counteract it at the time when it seemed to take his side, by yielding to the desire that Phillis dared not express, but which he divined, and by going to see Madame Dammauville.

When she entered his office on the fourth day, he knew at once by her manner that something favorable to Florentin had happened.

"Madame Dammauville is up," he said.

"No."

"I thought she must be, by your vivacity and lightness." "It is because I am happy; Madame Dammauville wishes to consult you."

He took her hands roughly and shook them.

"You have done that!" he exclaimed.

She looked at him frightened.

"You! You!" he repeated with increasing fury.

"At least listen to me," she murmured. "You will see that I have not compromised you in anything."

Compromised! It was professional dignity of which he thought, truly!

"I do not want to listen to you; I shall not go."

"Do not say that."

"It only needed that you should dispose of me in your own way."

"Victor!"

Anger carried him away.

"I belong to you, then! I am your thing! You do with me what you wish! You decide, and I have only to obey! There is too much of this! You can go; everything is at an end between us."

She listened, crushed; but this last word, which struck her in her love, gave her strength. In her turn she took his hands, and although he wished to

withdraw them, she held them closely in her own.

"You may throw in my face all the angry words you please; you may reproach me as much as you think I deserve it, and I will not complain. Without doubt, I have done you wrong, and I feel the weight of it on seeing how profoundly you are wounded; but to send me away, to tell me that all is over between us, no, Victor, you will not do that. You will not say it, for you know that never was a man loved as I love you, adored, respected. And voluntarily, deliberately, even to save my brother, that I should have compromised you!"

He pushed her from him.

"Go!" he said harshly.

She threw herself on her knees, and taking his hands that he had withdrawn, she kissed them passionately.

"But listen to me," she cried. "Before condemning me, hear my defence. Even if I were a hundred times more guilty than I really am, you could not drive me from you with this unmerciful hardness."

"Go!"

"You lose your head; anger carries you away. What is the matter? It is impossible that I, by my stupidity, through my fault, could put you in such a state of mad exasperation. What is the matter, my beloved?"

These few words did more than Phillis's despair of her expressions of love. She was right, he lost his head. And however guilty she might be towards him, it was evident that she could not admit that the fault she committed threw him into this access of furious folly. It was not natural;

and in his words and actions all must be natural, all must be capable of explanation.

"Very well, speak!" he said. "I am listening to you. Moreover, it is better to know. Speak!"

CHAPTER XXXI

THE APPOINTMENT

"You should understand," she said with a little more calmness—for, since he permitted her to speak, she hoped to convince him—"that I have done all I could to bring Madame Dammauville to the idea of calling, in consultation with Monsieur Balzajette, a doctor—"

"Which would be myself."

"You or another; I have not mentioned any name. You should not think me awkward enough to put you forward clumsily; it would not be a good way to make you acceptable to an intelligent woman, and I value your dignity too much to lower it. I believed that another doctor than Monsieur Balzajette would find a remedy, some way, a miracle if you will, to enable Madame Dammauville to go to the Palais de justice, and I said it. I said it in every tone, in every way, with as much persuasion as I could put in my words. Was it not the life of my brother that I defended, our honor? At first, I found Madame Dammauville much opposed to this idea. She would be better soon, she felt it. Otherwise, if it were her duty to be carried to the Palais de justice, she would not hesitate."

"She would do that?"

"Assuredly. No one has a stronger sense of justice. She would feel guilty did she not give her testimony to save an innocent person; not to save him when she could would be to take the responsibility of his loss. It is therefore certain that if she cannot go to court alone, she will do all she can to go, no matter how—on M. Balzajette's arm, or on a stretcher. I was, then, easy enough on this side, but I was not for the stretcher. What would people think to see her in this condition? What impression would she make on the jury? Would not her appearance weaken the value of her testimony? As Madame Dammauville is fond of me, and very kind to me, I determined to profit by this kindness to urge a consultation, but without mentioning any name. I represented to her that, since M. Balzajette might say with every appearance of truth he had cured her, he should not be angry if she desired to ratify this cure. That besides, there was an imperative motive that would not permit her to wait, for it would be very disagreeable to her to present herself at the court of assizes in a theatrical way, which was not at all according to her character or habits. I easily discovered that the fear of giving pain to this old friend of her husband was the chief reason why she was opposed to this consultation. It was then that your name was pronounced."

"You acknowledge it, then?"

"You will see how, and you will not be angry about it. I have often spoken to Madame Dammauville of mamma, and, consequently, of how you cured her paralysis, that resembled hers. It was not wrong, was it, to say what you have done for us? And without letting any one suspect my love, I could praise you, which my gratitude prompted. She asked me many questions, and naturally, as usual when I speak of you, when I have the joy of pronouncing your name, I answered in detail. That is not a crime?"

She waited a moment, looking at him. Without softening the hardness of his glance, he made a sign to her to continue.

"When I persisted on the consultation, Madame Dammauville recalled what I had said, and she was the first—you hear?—the first to pronounce your name. As you had cured my mother, I had the right to praise you. With a nature like hers, she would not have understood if I had not done it; she would have believed me ungrateful. I spoke of your book on the diseases of the spinal cord, which was quite natural; and as she manifested a desire to read it, I offered to lend it to her."

"Was that natural?"

"With any but Madame Dammauville, no; but she is not frivolous. I took the book to her two days ago, and she has just told me that, after reading it, she has decided to send for you."

"I shall certainly not go; she has her own physician."

"Do not imagine that I have come to ask you to pay her a visit; all is arranged with Monsieur Balzajette, who will write to you or see you, I do not know which."

"That will be very extraordinary on the part of Balzajette!"

"Perhaps you judge him harshly. When Madame Dammauville spoke to him of you he did not raise the smallest objection; on the contrary, he praised you. He says that you are one of the rare young men in whom one may have confidence. These are his own words that Madame Dammauville told me."

"What do I care for the opinion of this old beast!"

"I am explaining how it happens that you are called into consultation; it is not because I spoke of you, but because you have inspired Monsieur Balzajette with confidence. However stupid he may be, he is just to you, and knows your value."

It was come then, the time for the meeting that he did not wish to believe possible; and it was brought about in such a way that he did not see how he could escape it. He might refuse Phillis; but Balzajette? A colleague called him in consultation, and why should he not go? Had he foreseen this blow he would have left Paris until the trial was over, but he was taken unawares. What could he say to justify a sudden absence? He had no mother or brothers who might send for him, and with whom he would be obliged to remain. Besides, he wished to go to court; and since his testimony would carry considerable weight with the jury, it was his duty to be present on account of Florentin. It would be a contemptible cowardice to fail in this duty, and more, it would be an imprudence. In the eyes of the world he must appear to have nothing to fear, and this assurance, this confidence in himself, was one of the conditions of his safety. Now, if he went to court, and from every point of view it was impossible that he should not go, he would meet Madame Dammauville, as she intended to be carried there if she were unable to go in any other way. Whether it was at her house, or at the Palais de justice, the meeting was then certain, and in spite of what he had done, circumstances stronger than his will had prepared it and brought it about; nothing that he could do would prevent it.

The only question that deserved serious consideration just now was to know where this meeting would be the least dangerous for him—at Madame Dammauville's or at the Palais?

He reflected silently, paying no more attention to Phillis than if she were not present, his eyes fixed, his brow contracted, his lips tightly closed, when

the doorbell rang. As Joseph was at his post, Saniel did not move.

"If it is a patient," Phillis said, who did not wish to go yet, "I will wait in the dining-room."

And she rose.

Before she could leave the room, Joseph entered.

"Doctor Balzajette," he said.

"You see!" Phillis cried.

Without replying, Saniel made a sign to Joseph to admit Doctor Balzajette, and while Phillis silently disappeared, he went toward the parlor.

Balzajette came forward with both hands extended.

"Good-day, my young 'confrere'. I am enchanted to meet you."

The reception was benevolent, amicable, and protecting, and Saniel replied at his best.

"Since we met the other day," Balzajette continued, "I have thought of you. And nothing more natural than that, for you inspired me with a quick sympathy. The first time you came to see me you pleased me immediately, and I told you you would make your way. Do you remember?"

Assuredly he remembered; and of all the visits that he made to the doctors and druggists of his quarter, that to Balzajette was the hardest. It was impossible to show more pride, haughtiness, and disdain than Balzajette had put into his reception of the then unknown young man.

"I told you what I thought of you," continued Balzajette. "It is with regard to this patient of whom you spoke to me; you remember?"

"Madame Dammauville?"

"Exactly. I put her on her feet, as I told you, but since then this bad weather has compelled her to take to her bed again. Without doubt, it is only an affair of a few days; but in the mean time, the poor woman is irritable and impatient. You know women, young 'confrere'. To calm this impatience, I spontaneously proposed a consultation, and naturally pronounced your name, which is well known by your fine work on the medullary lesions. I supported it, as was proper, with the esteem that it has acquired, and I have the satisfaction to see it accepted."

Saniel thanked him as if he believed in the perfect sincerity of this spontaneous proposition.

"I like the young, and whenever an occasion presents itself, I shall be happy to introduce you to my clientage. For Madame Dammauville, when can you go with me to see her?"

As Saniel appeared to hesitate, Balzajette, mistaking the cause of his silence, persisted.

"She is impatient," he said. "Let us go the first day that is possible."

He must reply, and in these conditions a refusal would be inexplicable.

"Will to-morrow suit you?" he asked.

"To-morrow, by all means. At what hour?"

Before replying, Saniel went to his desk and consulted an almanac, which appeared perfectly ridiculous to Balzajette.

"Does he imagine, the young 'confrere', that I am going to believe his time so fully occupied that he must make a special arrangement to give me an hour?"

But it was not an arrangement of this kind that Saniel sought. His almanac gave the rising and the setting of the sun, and it was the exact hour of sunset that he wished: "26 March, 6h. 20m." At this moment it would not be dark enough at Madame Dammauville's for lamps to be lighted, and yet it would be dark enough to prevent her from seeing him clearly in the uncertain light of evening.

"Will a quarter past six suit you? I will call for you at six o'clock."

"Very well. Only I shall ask you to be very exact; I have a dinner at seven o'clock in the Rue Royale."

Saniel promised promptness. The dinner was a favorable circumstance, enabling him to escape from Madame Dammauville's before the lamps would be lighted.

When Balzajette was gone, he rejoined Phillis in the dining-room.

"A consultation is arranged for to-morrow at six o'clock, at Madame Dammauville's."

She threw herself on his breast.

"I knew that you would forgive me."

CHAPTER XXXII

THE FATAL LIGHT

It was not without emotion that the next day Sanial saw the afternoon slip away, and although he worked to employ his time, he interrupted himself at each instant to look at the clock.

Sometimes he found the time passing quickly, and then all at once it seemed to stand still.

This agitation exasperated him, for calmness had never been more necessary than at this moment. A danger was before him, and it was only in being master of himself that he could be saved. He must have the coolness of a surgeon during an operation, the glance of a general in a battle; and the coolness and the glance were not found among the nervous and agitated.

Could he escape from this danger?

This was the question that he asked himself unceasingly, although he knew the uselessness of it. What good was it to study the chances for or against him?

Either he had succeeded in rendering himself unrecognizable or he had not; but it was done, and now he could do nothing more. He did the best he

could in choosing an hour when the dim evening light put the chances on his side; for the rest he must trust to Fortune.

All day he studied the sky, because for the success of his plan it must be neither too bright nor too dark: if it were too bright Madame Dammauville could see him clearly; if it were too dark the lamps would be lighted. He remembered that it was by lamplight she had seen him. Until evening the weather was uncertain, with a sky sometimes sunny, sometimes cloudy; but at this hour the clouds were driven away by a wind from the north, and the weather became decidedly cold, with the pink and pale clearness of the end of March when it still freezes.

On examining himself he had the satisfaction to feel that he was calmer than in the morning, and that as the moment of attack approached, his agitation decreased; decision, firmness, and coolness came to him; he felt master of his will, and capable of obeying it.

At six o'clock precisely he rang at Balzajette's door, and they started immediately for the Rue Sainte-Anne. Happy to have a complaisant listener, Balzajette did all the talking, so that Sanie! had only to reply "yes" or "no" from time to time, and of course it was not of Madame Dammauville that he spoke, but other matters—of a first representation on the previous evening at the Opera Comique; of politics; of the next salon.

At exactly a quarter past six they reached the house in the Rue Sainte-Anne, where Sanie! had not been since Caffie's death. On passing the old concierge's lodge he felt satisfied with himself; his heart did not beat too quickly, his ideas were firm and clear. Should danger arrive, he felt assured of mastery over himself, without excitement, as without brutality.

Balzajette rang the bell, and the door was opened by a maid, who was, evidently, placed in the vestibule to await their arrival. Balzajette entered

first, and Saniel followed him, giving a hasty glance at the rooms through which they passed. They reached a door at which Balzajette knocked twice.

"Enter," replied a feminine voice in a firm tone.

This was the decisive moment; the day was everything that could be wished, neither too light nor too dark. What would Madame Dammauville's first glance mean?

"My confrere, Doctor Saniel," Balzajette said on going toward Madame Dammauville, and taking her hand.

She was lying on the little bed of which Phillis had spoken, but not against the windows, rather in the middle of the room, placed there evidently after the experience of a sick person who knows that to be examined she must be easily seen.

Profiting by this arrangement, Saniel immediately passed between the bed and the windows in such a way that the daylight was behind him, and consequently his face was in shadow. This was done naturally, without affectation, and it seemed that he only took this side of the bed because Balzajette took the other.

Directed by Saniel, the examination commenced with a clearness and a precision that pleased Balzajette. He did not lose himself in idle words, the young 'confrere', any more than in useless details. He went straight to the end, only asking and seeking the indispensable; and as Madame Dammauville's replies were as precise as his questions, while listening and putting in a word from time to time he said to himself that his dinner would not be delayed, which was the chief point of his preoccupation. Decidedly, he understood life, the young 'confrere'; he might be called in consultation

with his heavy appearance and careless toilet, there was no danger of rivalry.

However, when Madame Dammauville began to speak of being sensitive to cold, Balzajette found that Sanielet her lost herself in minute details.

"Have you always been sensitive to cold?"

"Yes; and with a deplorable disposition to take cold if the temperature is lowered one or two degrees."

"Did you exercise in the open air?"

"Very little."

"Were you ever advised to try shower-baths of cold water?"

"I should not have been able to bear it."

"I must tell you," Balzajette interrupted, "that before occupying this house that belongs to her, Madame Dammauville lived in a more modern apartment which was heated by a furnace, and where consequently it was easier to maintain an even temperature to which she was accustomed."

"On coming to live in this house, where it is not possible to have a furnace," Madame Dammauville went on, "I employed every means to shelter me from the cold, which I am sure is my great enemy. You can see that I have had weather-strips put at the doors, as well as at the windows."

In spite of this invitation and the gesture which accompanied it, Sanielet was careful not to turn his head toward the window; he kept his face in the shadow, contenting himself with looking at the door which was opposite to him.

"At the same time," she continued, "I had hangings put on the walls, carpets on the floors, thick curtains at the windows and doors, and in spite of the large fire in my fireplace, often I am unable to get warm."

"Do you also have a fire in this little stove?" Saniei asked, pointing to a small movable stove at the corner of the fireplace.

"Only at night, so that my servants need not get up every hour to replenish the fire in the chimney. The fire is made in the evening just before I go to sleep; the pipe is placed in the chimney, and it maintains sufficient heat until morning."

"I think it will be expedient to suppress this mode of heating, which must be very inconvenient," Saniei said; "and my 'confrere' and myself will consider the question whether it will not be possible to give you the heat you need with this chimney, without fatiguing your servants, and without waking you too often to take care of the fire. But let us continue."

When he reached the end of his questions he rose to examine the patient on her bed, but without turning round, and in such a way as still to keep his back to the light.

As little by little the reflection of the setting sun faded,

Balzajette proposed asking for a lamp: without replying too hastily, Saniei refused; it was useless, the daylight was sufficient.

They passed into the parlor, where they very quickly came to an amicable conclusion, for at everything that Saniei said Balzajette replied:

"I am happy to see that you partake of my opinion. That is it. Truly, that is so!"

And, besides, each had his reasons for hurrying—Saniel, for fear of the lamps; Balzajette, uneasiness for his dinner. The diagnosis and the treatment were rapidly settled; Saniel proposed, Balzajette approved. The question of the movable stove was decided in two words: for the night a grate would be placed in the chimney; a fire of coal covered with damp coal-dust would keep the fire until morning.

"Let us return," Balzajette said, who took the initiative and decided on all material things.

Saniel, who kept his eyes on the windows, was calm; it was yet too light to need lamps, besides, during their *tete-a-tete*, no servant had crossed the salon to enter Madame Dammauville's room.

But when Balzajette opened the door to return to the patient, a flood of light filled the parlor and enveloped them. A lamp with a shade was placed on the little table near the bed, and two other lighted lamps with globes were on the mantel, reflecting their light in the mirror. How had he not foreseen that there was another door to Madame Dammauville's room besides the door from the parlor? But if he had foreseen it, it would not have lessened the danger of the situation.

He would have had time to prepare himself, that was all. But to prepare himself for what? Either to enter the room and brave this danger, or to fly. He entered.

"This is what we have decided," Balzajette said, who never lost an occasion to put himself forward and to speak.

While he spoke, Madame Dammauville seemed not to listen to him. Her eyes were on Saniel, placed between her and the chimney with his back to the lamps, and she looked at him with a characteristic fixedness.

Balzajette, who listened to himself, observed nothing; but Sanieel, who knew what there was behind this glance, could not but be struck with it. Happily for him, he had only to let Balzajette talk, for if he had spoken he would surely have betrayed himself by the quivering of his voice.

However, Balzajette seemed coming to the end of his explanations. Suddenly Sanieel saw Madame Dammauville extend her hand toward the lamp on the table, and raise the shade by lowering it toward her in such a way as to form a reflector that threw the light on him. At the same time he received a bright ray full on his face.

Madame Dammauville uttered a small, stifled cry.

Balzajette stopped; then his astonished eyes went from Madame Dammauville to Sanieel, and from Sanieel to Madame Dammauville.

"Are you suffering?" he asked.

"Not at all."

What, then, was the matter? But it was seldom that he asked for an explanation of a thing that astonished him, preferring to divine and to explain it himself.

"Ah! I understand it," he said with a satisfied smile.

"The youth of my young 'confrere' astonishes you. It is his fault. Why the devil did he have his long hair and his light curled beard cut?"

If Madame Dammauville had not released the lampshade, she would have seen
Sanieel turned pale and his lips quiver.

"Mais voila!" continued Balzajette. "He made this sacrifice to his new functions; the student has disappeared before the professor."

He might have continued along time. Neither Madame Dammauville nor Sanie! listened to him; but, thinking of his dinner, he was not going to launch into a discourse that at any other moment he would not have failed to undertake. He rose to go.

As Sanie! bowed, Madame Dammauville stopped him with a movement of her hand.

"Did you not know this unfortunate who was assassinated opposite?" she asked, pointing to the windows.

So serious as was an acknowledgment, Sanie! could not answer in the negative.

"I was called in to prove his death," he said.

And he took several steps toward the door, but she stopped him again.

"Had you business with him?" she asked.

"I saw him several times."

Balzajette cut short this conversation, which was idle talk to him.

"Good evening, dear Madame. I will see you tomorrow, but not in the morning, for I go to the country at six o'clock, and shall not return until noon."

CHAPTER XXXIII

SUSPENSE

"Did you observe how I cut the conversation short?" Balzajette said, as they went down-stairs. "If you listen to women they will never let you go. I cannot imagine why she spoke to you of this assassinated man, can you?"

"No."

"I believe that this assassination has affected her brain to a certain point. In any case, it has given her a horror of this house."

He continued thus without Sanie! listening to what he said. On reaching the Rue Neuve-des-Petits-Champs, Balzajette hailed a passing cab.

"You have had the kindness not to delay me," he said, pressing the hand of his young 'confrere', "but I feel that I must hurry. 'Au revoir'."

A good riddance! This babbling gave Sanie! the vertigo.

He must recover himself, look the situation in the face, and consider that which might, which must, happen.

The situation was plain; Madame Dammauville's cry revealed it. When the lamplight struck him full in the face, she found in him the man whom she had seen draw Caffie's curtains. If, in her amazement, she at first refused

to believe it, her questions regarding Caffie, and Balzajette's explanations about his hair and beard, destroyed her hesitation and replaced doubt by the horror of certainty. He was the assassin; she knew it, she had seen him. And such as she revealed herself to him, it seemed that she was not the woman to challenge the testimony of her eyes, and to let the strength of her memory be shaken by simple denials, supported by Balzajette's words.

With a vivid clearness he saw to the bottom of the abyss open before him; but what he did not see was in what way she would push him into this giddy whirlpool, that is, to whom she would reveal the discovery that she had made. To Phillis, to Balzajette, or to the judge?

It was almost a relief to think that for this evening, at least, it would not be to Phillis, for at this moment she would be at his rooms, anxiously awaiting his return. He felt a sadness and a revulsion at the thought that she might be the first to learn the truth. He did not wish that, and he would prevent it.

This preoccupation gave him an object; he reached the Rue Louis-le-Grand thinking more of Phillis than of himself. What distress when she should know all! How could she support this blow, and with what sentiments would it inspire her, with what judgment for the man whom she loved? Poor girl! He grew tender at the thought. As for him, he was lost, and it was his fault; he bore the penalty of his own stupidity. But Phillis—it would be a blow to her love that she must bear. And what a blow to this sensitive heart, to this proud and noble soul!

Perhaps he would now see her for the last time, for this one hour, and never again. Then he would be kind to her, and leave her a memory that, later, would be an alleviation to her sorrow, a warm, bright ray in her time of mourning. During these last few days he had been hard, brutal, irritable, strange, and with her habitual serenity she had overlooked it all. When he

pushed her from him with his heavy hand, she had kissed this hand, fastening on him her beautiful, tender eyes, full of passionate caresses. He must make her forget that, and she must carry from their last interview a tender impression that would sustain her.

What could he do for her? He remembered how happy she had been at their impromptu dinners six months before, and he would give her this same pleasure. He would see her happy again, and near her, under her glance, perhaps he would forget tomorrow.

He went to the caterer who furnished him with breakfast, and ordered two dinners to be sent to his rooms immediately.

Before he could put the key in the lock, his door was opened by Phillis, who recognized his step on the landing.

"Well?"

"Your brother is saved."

"Madame Dammauville will go to court?"

"I promise you that he is saved."

"By you?"

"Yes, by me—exactly."

In her access of joy, she did not notice the accent on these last words.

"Then you forgive me?"

He took her in his arms, and kissing her with deep emotion said:

"With all my heart, I swear it!"

"You see it was written that you should see Madame Dammauville, in spite of yourself, in spite of all; it was providential."

"It is certain that your friend Providence could not interfere more opportunely in my affairs."

This time she was struck by the tone of his voice; but she imagined that it was only this allusion to superior intervention that had vexed him.

"It was of ourselves that I thought," she said, "not of you."

"I understood. But do not let us talk of that; you are happy, and I do not wish to shadow your joy. On the contrary, I thought to associate myself with it by giving you a surprise: we are going to dine together."

"Oh, dearest!" she exclaimed, trembling, "how-good you are! I will set the table," she added joyously, "and you light the fire; for we must have a bright fire to enliven us and to keep our dinner warm. What have you ordered?"

"I do not know; two dinners."

"So much the better! We will have surprises. We will leave the dishes covered before the fire, and we will take them anyhow. Perhaps we shall eat the roast before the entree, but that will be all the more funny."

Light, quick, busy, graceful, and charming, she came and went around the table.

When the dinner came, the table was ready, and they sat down opposite to each other.

"What happiness to be alone!" she said. "To be able to talk and to look at each other freely!"

He looked at her with a tenderness in his eyes that she had never before seen, with a depth of serious contemplation that overwhelmed her. From time to time little cries of happiness escaped her.

"Oh! Dearest, dearest!" she murmured.

Yet she knew him too well not to see that a cloud of sadness often veiled these eyes full of love, and that also they were often without any expression, as if they looked within. Suddenly she became quiet; but she could not long remain silent when she was uneasy. Why this melancholy at such a moment?

"What a difference between this dinner," she said, "and those of the end of October! At that time you were harassed by the most trying difficulties, at war with creditors, menaced on all sides, without hope; and now all is smooth. No more creditors, no more struggles. The cares that I brought you are nearly at an end. Life opens easy and glorious. The end that you pursued is reached; you have only to walk straight before you, boldly and proudly. Yet there is a sadness in your face that torments me. What is the matter? Speak, I beg you! To whom should you confess, if not to the woman who adores you?"

He looked at her a long time without replying, asking himself if, for the peace of his own heart, this confession would not be better than silence; but courage failed him, pride closed his lips.

"What should be the matter?" he said. "If my face is sad, it does not indicate faithfully what I feel; for what I feel at this moment is an ineffable sentiment of tenderness for you, an inexpressible gratitude for your love,

and for the happiness that you have given me. If I have been happy in my rough and struggling life, it is through you. What I have had of joy, confidence, hope, memories, I owe to you; and if we had not met I should have the right to say that I have been the most miserable among the miserable. Whatever happens to us, remember these words, my darling, and bury them in the depths of your heart, where you will find them some day when you would judge me."

"To judge you—I!"

"You love me, therefore you do not know me. But the hour will come when you will wish to know exactly the man whom you have loved; when that time comes remember this evening."

"It is too radiant for me to forget it."

"Whatever it may be, remember it. Life is so fragile and so ephemeral a thing, that it is beautiful to be able to concentrate it, to sum it up by remembrance, in one hour that marks it and gives it its scope. Such an hour is this one, which passes while I speak to you with deep sincerity."

Phillis was not accustomed to these 'elanas', for, in the rare effusions to which he sometimes abandoned himself, Saniel always observed a certain reserve, as if he feared to commit himself, and to let her read his whole nature. Many times he rallied her when she became sentimental, as he said, and "chantait sa romance;" and now he himself sang it—this romance of love.

Great as was her happiness to listen to him, she could not help feeling an uneasy astonishment, and asked herself under what melancholy impression he found himself at this moment.

He read her too well not to divine this uneasiness. Not wishing to betray himself, he brought a smile to his eyes, and said:

"You do not recognize me, do you? I am sure you are asking yourself if I am not ill."

"Oh, dearest, do not jest, and do not harden yourself against the sentiment that makes such sweet music on your lips! I am happy, so happy, to hear you speak thus, that I would like to see your happiness equal to mine; to dissipate the dark cloud that veils your glance. Will you never abandon yourself? At this hour, above all, when everything sings and laughs within us as about us! Nothing was more natural than that you should be sad six months ago; but today what more do you want to make you happy?"

"Nothing, it is true."

"Is not the present the radiant morning of a glorious future?"

"What will you? There are sad physiognomies as there are happy ones; mine is not yours. But let us talk no more of that, nor of the past, nor of the future; let us talk of the present."

He rose, and, taking her in his arms, made her sit next to him on the sofa.

The sound of the doorbell made Sanial jump as if he had received an electric shock.

"You will not open the door?" Phillis said. "Do not let any one take our evening from us."

But soon another ring, more decided, brought him to his feet.

"It is better to know," he said, and he went to open the door, leaving Phillis in his office.

A maid handed him a letter.

"From Madame Dammauville," she said; "there is an answer."

He left her in the vestibule, and returned to his office to read the letter. The dream had not lasted long; reality seized him with its pitiless hands. This letter, certainly, would announce the blow that menaced him.

"If Dr. Saniel is disengaged, I beg that he will come to see me this evening on an urgent affair; I will wait for him until ten o'clock.

If not, I count on seeing him to-morrow morning after nine o'clock.

"A. DAMMAUVILLE."

He returned to the vestibule.

"Say to Madame. Dammauville that I shall be there in a quarter of an hour."

When he reentered the office he found Phillis before the glass, putting on her hat.

"I heard," she said. "What a disappointment! But I cannot wish you to stay, since it is for Florentin that you leave me."

As she walked toward the door he stopped her.

"Embrace me once more."

Never had he pressed her in such a long and passionate embrace.

CHAPTER XXXIV

ON THE RACK

He had not a second of doubt; Madame Dammauville did not wish a professional visit from him. She wished to speak to him of Caffie, and, in the coming crisis, he said to himself that perhaps it was fortunate that it was so; at least he would be first to know what she had decided to do, and he could defend himself. Nothing is hopeless as long as a struggle is possible.

He rang the bell with a firm hand, and the door was opened by the maid who brought the letter. With a small lamp in her hand, she conducted him through the dining-room and the salon to Madame Dammauville's bedroom.

At the threshold, a glance showed him that some changes had been made in the arrangement of the furniture. The small bed where he had seen Madame Dammauville was placed between the two windows, and she was lying in a large bed with canopy and curtains. Near her was a table on which were a shaded lamp, some books, a blotting-book, a teapot, and a cup; on the white quilt rested an unusually long bellrope, so that she might pull it without moving. The fire in the chimney was out, but the movable stove sent out a heat that denoted it was arranged for the night.

Saniel felt the heat, and mechanically unbuttoned his overcoat.

"If the heat is uncomfortable, will you not remove your overcoat?"
Madame Dammauville said.

While he disposed of it and his hat, placing them on a chair by the fireplace, he heard Madame Dammauville say to her maid:

"Remain in the salon, and tell the cook not to go to bed."

What did this mean? Was she afraid that he would cut her throat?

"Will you come close to my bed?" she said. "It is important that we should talk without raising our voices."

He took a chair and seated himself at a certain distance from the bed, and in such a way that he was beyond the circle of light thrown by the lamp. Then he waited.

A moment of silence, which he found terribly long, slipped away before she spoke.

"You know," she said at last, "how I saw, accidentally, from this place" — she pointed to one of the windows—" the face of the assassin of my unfortunate tenant, Monsieur Caffie."

"Mademoiselle Cormier has told me," he replied in a tone of ordinary conversation.

"Perhaps you are astonished that at such a distance I saw the face clearly enough to recognize it after five months, as if it were still before me."

"It is extraordinary."

"Not to those who have a memory for faces and attitudes; with me this memory has always been strongly developed. I remember the playmates of

my childhood, and I see them as they were at six and ten years of age, without the slightest confusion in my mind."

"The impressions of childhood are generally vivid and permanent."

"This persistency does not only apply to my childish impressions. Today, I neither forget nor confound a physiognomy. Perhaps if I had had many acquaintances, and if I had seen a number of persons every day, there might be some confusion in my mind; but such is not the case. My delicate health has obliged me to lead a very quiet life, and I remember every one whom I have met. When I think of such a one, it is not of the name at first, but of the physiognomy. Each time that I have been to the Senate or to the Chamber, I did not need to ask the names of the deputies or senators who spoke; I had seen their portraits and I recognized them. If I go into these details it is because they are of great importance, as you will see."

It was not necessary for her to point out their importance; he understood her only too well.

"In fine, I am thus," she continued. "It is, therefore, not astonishing that the physiognomy and the attitude of the man who drew the curtains in Monsieur Caffie's office should not leave my memory. You admit this, do you not?"

"Since you consult me, I must tell you that the operations of the memory are not so simple as people imagine. They comprise three things: the conservation of certain states, their reproduction and localization in the past, which should be reunited to constitute the perfect memory. Now this reunion does not always take place, and often the third is lacking."

"I do not grasp your meaning very well. But what is the third thing?"

"Recognition."

"Well, I can assure you that in this case it is not lacking!"

The action beginning in this way, it was of the utmost importance for Saniel that he should throw doubts in Madame Dammauville's mind, and should make her think that this memory of which she felt so sure was not, perhaps, as strong or as perfect as she imagined.

"It is," he said, "exactly this third thing that is the most delicate, the most complex of the three, since it supposes, besides the state of consciousness, some secondary states, variable in number and in degree, which, grouped around it, determine it."

Madame Dammauville remained silent a moment, and Saniel saw that she made an effort to explain these obscure words to herself.

"I do not understand," she said at last.

This was exactly what he wished; yet, as it would not be wise to let her believe that he desired to deceive or confuse her, he thought he might be a little more precise.

"I wish to ask," he said, "if you are certain that in the mechanism of the vision and that of the recognition, which is a vision of the past, there is no confusion?"

She drew a long breath, evidently satisfied to get rid of these subtleties that troubled her.

"It is exactly because I admit the possibility of this confusion, at least in part, that I sent for you," she said, "in order that you might establish it."

Saniel appeared not to comprehend.

"I, Madame?"

"Yes. When you came herewith Monsieur Balzajette a few hours ago, you must have observed that I examined you in a way that was scarcely natural. Before the lamps were lighted, and when you turned your back to the daylight, I tried in vain to remember where I had seen you. I was certain that I found in you some points of resemblance to a physiognomy I had known, but the name attached to this physiognomy escaped me. When you returned, and I saw you more clearly by lamplight, my recollections became more exact; when I raised the lamp-shade the light struck you full in the face, and then your eyes, so characteristic, and at the same time a violent contraction of your features, made me recall the name. This physiognomy, these eyes, this face, belonged to the man whom from this place" she pointed to the window—"I saw draw Monsieur Caffies curtains."

Saniel did not flinch.

"This is a resemblance that would be hard for me," he said, "if your memory were faithful."

"I tell myself that it may not be. And after the first feeling of surprise which made me cry out, I was confirmed in this thought on recalling the fact that you did not wear the long hair and blond beard that the man wore who drew the curtains; but at that moment Monsieur Balzajette spoke of the hair and beard that you had had cut. I was prostrated. However, I had the strength to ask if you had had any business with Monsieur Caffie. Do you remember your answer?"

"Perfectly."

"After your departure I experienced a cruel anguish. It was you whom I had seen draw the curtains, and it could not be you. I tried to think what I ought to do—to inform the judge or to ask you for an interview. For a long time I wavered. At length I decided on the interview, and I wrote to you."

"I have come at your call, but I declare that I do not know what to reply to this strange communication. You believe that you recognize in me the man who drew the curtains."

"I recognize you."

"Then what do you wish me to say? It is not a consultation that you ask of me?"

She believed she understood the meaning of this reply and divined its end.

"The question does not concern me," she said, "neither my moral nor mental state, but yourself. My eyes, my memory, my conscience, bring a frightful accusation against you. I cannot believe my eyes or my memory. I challenge my conscience, and I ask you to reduce this accusation to nothing."

"And how, Madame?"

"Oh, not by protestations!"

"How can you expect that a man in my position will lower himself to discuss accusations that rest on an hallucination?"

"Do you believe that I have hallucinations? If you do, call one of your 'confreres' to-morrow in consultation. If he believes as you do, I will

submit; if not, I shall be convinced that I saw clearly, and I shall act accordingly."

"If you saw clearly, Madame, and I am ready to concede this to you, it proves that there is some one somewhere who is my double."

"I said this to myself; and it is exactly this idea that made me write to you. I wished to give you the opportunity of proving that you could not be this man."

"You will agree that it is difficult for me to admit a discussion on such an accusation."

"One may find one's self accused by a concourse of fatal circumstances, and be not less innocent. Witness the unfortunate boy imprisoned for five months for a crime of which he is not guilty. And I pass from your innocence as from his, to ask you to prove that the charges against you are false."

"There are no charges against me."

"There may be; that depends upon yourself. Your hair and beard may have been cut at the time of the assassination; in that case it is quite certain that the man I saw was not you, and that I am the victim of an hallucination. Were they or were they not?"

"They were not; it is only a few days since I had them cut on account of a contagious disease."

"It may be," she continued, without appearing to be impressed by this explanation, "that the day of the assassination, at the hour when I saw you, you were occupied somewhere in such a way that you can prove you could not have been in the Rue Sainte-Anne, and that I was the victim of an

hallucination. And again, it may be that at the time your position was not that of a man at the last extremity, forced to crime by misery or ambition, and that consequently you had no interest in committing the crime of a desperate man. What do I know? Twenty other means of defence may be in your hands."

"You cited the example of this poor boy who is imprisoned, although innocent. Would it not be applicable to me if you did not recognize the error of your eyes or your memory? Would he not be condemned without your testimony? Should I not be if I do not find one that destroys your accusation? And I see no one from whom I can ask this testimony. Have you thought of the infamy with which such an accusation will cover me? If I repel it, and I shall repel it, will it not have dishonored me, ruined me forever?"

"It is just because I thought of this that I sent for you, to the end that by an explanation that you would give, it seemed to me, you would prevent me from informing the judge of this suspicion. This explanation you do not give me; I must now think only of him whose innocence is proved for me, and take his side against him whose guilt is not less proved. To-morrow I shall inform the judge."

"You will not do that!"

"My duty compels me to; and whatever might come, I have always done my duty. For me, in this horrible affair, there is the cause of the innocent and of the guilty, and I place myself on the side of the innocent."

"I can prove to you that it was an aberration of vision—"

"You will prove it to the judge; the law will appreciate it."

He rose brusquely. She put her hand on the bellcord. They looked at each other for a moment, and what their lips did not express their eyes said:

"I do not fear you; my precautions are taken."

"That bell will not save you."

At last he spoke in a hoarse and quivering voice:

"To you the responsibility of whatever happens Madame."

"I accept it before God," she said, with a calm firmness. "Defend yourself."

He went to the armchair on which he had placed his coat and hat, and bending down to take them, he noiselessly turned the draught of the stove.

At the same time Madame Dammauville pulled the bellcord; the maid opened the door of the salon.

"Show Doctor Saniel to the door."

CHAPTER XXXV

A SECOND VICTIM

On returning to his room Saniel was very much cast down, and without lighting a candle, he threw himself on the divan, where he remained prostrated.

The frightful part of the affair was the rapidity with which he condemned this poor woman to death, and without hesitation executed her. To save himself she must die; she should die. This time the idea did not turn and deviate as in Caffie's case. Is it not true then, that it is the first crime that costs, and in the path that he had entered, would he go on to the end sowing corpses behind him?

A shudder shook him from head to foot as he thought that this victim might not be the last that his safety demanded. When she threatened to warn the judge, he only saw a threat; if she spoke he was lost; he had closed her mouth. But had not this mouth opened before he closed it? Had she not already spoken? Before deciding on this interview she may have told all to some one of her friends, who, between the time of his departure with Balzajette and his return, might have visited her, or to some one for whom she had sent for advice. In that case, those also were condemned to death.

A useless crime, or a series of crimes?

The horror that rose within him was so strong that he thought of running to the Rue Sainte-Anne; he would awake the sleeping household, open the doors, break the windows, and save her. But between his departure and this moment the carbonic acid and the oxide of carbon had had time to produce asphyxiation, and certainly he would arrive after her death; or, if he found her still living, some one would discover that the draught of the stove had been turned, and seeing it, he would betray himself as surely as by an avowal.

After all, the maid might have discovered that the draught was turned, and in that case she was saved and he was lost. Chance would decide between them.

There are moments when a shipwrecked man, tired of swimming, not knowing to which side to direct his course, without light, without guide, at the end of strength and hope, floats on his back and lets himself be tossed by the waves, to rest and wait for light. This was his case; he could do nothing but wait.

He would not commit the insane folly of wishing to see and know, as in Caffie's case; he would know the result soon enough, too soon.

Rising, he lighted a candle, and paced up and down his apartment like a caged animal. Then it occurred to him that those underneath would hear his steps; doubtless they would remark this agitated march, would be surprised, and would ask an explanation. In his position he must take care not to give cause for any remark that could not be explained. He took off his boots and continued his walk.

But why had she spoken to him of double weatherstrips at the doors and windows, of hangings on the walls, of thick curtains? It was she who thus

suggested to him the idea of the draught of the stove, which would not have come to him spontaneously.

The night passed in such agitating thoughts; at times the hours seemed to stand still, and again they flew with astounding rapidity. One moment the perspiration fell from his forehead on his hands; at another he felt frozen.

When his windows grew light with the dawn, he threw himself prostrated and shuddering on the divan, and leaning on a cushion he detected the odor of Phillis; burying his head in it he remained motionless and slept.

A ring of the bell woke him, horrified, frightened; he did not know where he was. It was broad daylight, carriages rumbled through the street. A second ring sounded stronger, more violent. Shivering, he went to open the door, and recognized the maid who the previous evening brought a note from Madame Dammauville. He did not need to question her: fate was on his side. His eyes became dim; without seeing her he heard the maid explain why she had come.

She had been to Monsieur Balzajette; he was in the country. Her mistress was nearly cold in her bed; she neither spoke nor breathed, yet her face was pink.

"I will go with you."

He did not need to learn more. That rosy color, which has been observed in those asphyxiated by oxide of carbon, decided it. However, he questioned the maid.

Nothing had occurred; she had talked with the cook in the kitchen, who, near midnight, went to her room in the fifth story, and then she went to bed in a small room contiguous to that of her mistress. During the night she

heard nothing; in the morning she found her mistress in the state she mentioned, and immediately went for Monsieur Balzajette.

Continuing his questions, Sanie! asked her what Madame Dammauville did after the consultation with Monsieur Balzajette.

"She dined as usual, but less than usual, eating almost nothing; then she received a visit from one of her friends, who remained only a few minutes, before starting on a voyage."

This was what he dreaded: Madame Dammauville might have told this friend. If this were so, his crime would be of no use to him; where would it carry him?

After a few moments, and in a tone that he tried to render indifferent, he asked the name of this friend.

"A friend of her youth, Madame Thezard, living at No. 9, in the Rue des Capucines, the wife of a consul."

Until he reached the house in the Rue Sainte-Anne he repeated this name and address to himself, which he could not write down, and which he must not forget, for it was from there now that the danger would come if Madame Dammauville had spoken.

For a long time he had been habituated to the sight of death, but when he found himself in the presence of this woman stretched on her bed as if she slept, a shiver seized him.

"Give me a mirror and a candle," he said to the maid and the cook who stood at the door, not daring to enter.

While they went in search of these things he walked over to the stove; the draught remained as he had turned it on the previous evening; he opened it and returned to the bed.

His examination was not long; she had succumbed to asphyxiation caused by the gas from the charcoal. Did it proceed from the construction of the stove, or from a defect in the chimney? The inquest would decide this; as for him, he could only prove the death.

On leaving him the evening before, Phillis, uneasy, told him that she would come early in the morning to know what Madame Dammauville wished. When he told her she was dead she was prostrated with despair; in that case Florentin was lost. He tried to reassure her, but without success.

Nougarede, also, was in despair, and regretted that he had not proceeded otherwise. And he tried to reassure Phillis; the prosecution rested on the button and the struggle that had torn it off. Saniel would destroy this hypothesis; he counted on him.

Saniel became, then, as he had been before the intervention of Madame Dammauville, the only hope of Phillis and her mother, and to encourage them he exaggerated the influence that his testimony would have.

"When I shall have demonstrated that there was no struggle, the hypothesis of the torn button will crumble by itself."

"And if it is sustained, how and with what shall we overthrow it?"

If he had appeared as usual, she would have shared the confidence with which he tried to inspire her; but since the death of Madame Dammauville he was so changed, that she could not help being uneasy. Evidently it was Madame Dammauville's death that made him so gloomy and irritable that

he would submit to no opposition. He saw the dangers of the situation that this death created for Florentin, and with his usual generosity he reproached himself for not having consented to take care of her sooner; he would have saved her, certainly, as he had begun by demanding the removal of the stove, and Florentin would have been saved also.

The day of the trial arrived without a word from Madame Thezard, which proved that Madame Dammauville had said nothing to her friend. It was six months since the assassination occurred, and the affair had lost all interest for the Parisian public; in the provinces it was still spoken of, but at Paris it was a thing of the past. There is no romance about a clerk who cuts the throat of his employer to rob him; there is no woman in the case, no mystery.

Saniel preferred that Phillis should remain at home with her mother, but in spite of his wishes and prayers she insisted on going to court. She must be there so that Florentin would see her and take courage; he would defend himself better if she were there.

He defended himself badly, or at least indifferently, like a man who gives up because he knows beforehand that whatever he may say will be useless.

Until Saniel's deposition the witnesses who testified were insignificant enough, and revealed nothing that was not already known; only Valerius, with his pretensions to a professional secret, which he developed slowly, amused the audience. This deposition Saniel made brief and exact, contenting himself with repeating his report. But then Nougarede rose, and begged the president to ask the witness to explain the struggle which should have taken place between the victim and his assassin; and the president, who had commenced by arguing, before the insistence of the defence, decided to ask this question. Then Saniel slowly explained how the position

of the body in the armchair and his condition were scientific proof that there was no struggle.

"This is an opinion," said the president dryly; "the jury will appreciate it."

"Perfectly," replied Nougarede, "and I intend to make the jury feel the weight that it carries on the authority of him who formulated it."

This phrase for effect was destined to invalidate in advance the contradictions that the prosecution would, he believed, raise against the testimony; but nothing of the kind occurred, and Saniel could go and take his place beside Phillis without being called to the bar to sustain his opinion against a physician whose scientific authority would be opposed to his.

In default of Madame Dammauville, Nougarede had summoned the concierge of Rue Sainte-Anne, as well as the maid and the cook, who had heard their mistress say that the man who drew Caffies curtains did not resemble Florentin's portrait; but this was only gossip repeated by persons of no importance, who could not produce the effect of the 'coup de theatre' on which he had based his defence.

When the advocate-general pronounced his address, it was evident why Saniel's opinion on the absence of a struggle was not contradicted. Although the prosecution believed in this struggle, it wished to abandon it a moment, having no need of this hypothesis to prove that the button had not been torn off on falling from a ladder; it had been done in the act of assassination, in the effort made to cut the throat of the victim who had violently extended the right arm, and, by the shock to the suspenders, the button was torn off. The effect of Saniel's deposition was destroyed, and that one produced by the testimony of Madame Dammauville's maids, far less strong, was also destroyed when the advocate-general proved that this gossip turned against the accused. She had seen, it was said, a man with long hair and curled

beard, draw the curtains; very well! Does this description apply to the accused? To tell the truth, it was said that she did not recognize him in a portrait published by an illustrated paper. Well, it was because this portrait did not resemble him. Besides, was it possible to admit that a woman of Madame Dammauville's character would not have informed the judge if she believed her testimony important and decisive? The proof that she considered it insignificant was the fact that she had kept silent.

Nougarede's eloquent appeal did not destroy these two arguments, any more than it effaced the impression produced by the money-lender relative to the theft of forty-five francs. The jury brought in a verdict of "Guilty," but without premeditation, and admitting extenuating circumstances.

On hearing the decree that condemned Florentin to twenty years of forced labor, Phillis, half suffocated, clung to Saniel's arm; but he could not give her the attention he wished, for Brigard, who came to the trial to assist at the triumph of his disciple, accosted him.

"Receive my felicitations for your deposition, my dear friend; it is an act of courage that does you honor. If this poor boy could have been saved, it would have been by you; you may well say you are the man of conscience."

ETEXT EDITOR'S BOOKMARKS:

It is the first crime that costs
Repeated and explained what he had already said and explained
You love me, therefore you do not know me

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